

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Nathan Vu

Department N15

Hearing Date and Time: July 13, 2026 @ 9:00 AM

TENTATIVE RULINGS: The court will endeavor to post tentative rulings on this website by 3:00 p.m. on the day before the hearing. However, ongoing proceedings may prevent posting by that time or the court may have no tentative ruling on a matter.

Once a tentative ruling has been posted, the court may not entertain requests for continuance and may not consider additional papers.

ORAL ARGUMENT: The court will hear oral argument regarding law and motion matters on the hearing date and at the time stated above, unless all parties submit on the tentative ruling. Parties are not required to give notice of intent to appear.

If you wish to submit on the tentative ruling and do not intend to appear at the hearing, please inform opposing counsel and the court clerk by electronic mail n15@occourts.org or by telephone (657) 622-5615. If all parties submit on the tentative ruling or no parties or counsel appear for the hearing, then the tentative ruling shall become the final ruling.

APPEARANCES: Parties and counsel may appear at the law and motion hearing in-person or via Zoom. Persons appearing in-person shall come to Department N15 at the North Justice Center, 1275 N. Berkeley Avenue, Fullerton, CA 92832.

Persons appearing remotely must check-in online through the court's website at <https://www.occourts.org/general-information/covid-19-response/civil-covid-19-response/civil-remote-hearings> and then clicking on the button entitled "Department N15 Judge Nathan Vu".

Anyone having difficulty appearing remotely may contact the court clerk at (657) 622-5615.

All persons appearing remotely must abide by all applicable laws and rules, including Local Rule 375, and must obtain, test the functionality of, and learn how to use the Zoom application and all necessary equipment prior to the remote hearing. More information is available at <https://www.occourts.org/media-relations/civil.html>.

COURT REPORTERS: Court reporters employed by the court are NOT normally provided for law and motion matters in civil courtrooms. If a party desires a record of a law and motion proceeding, it is the party's responsibility to arrange for a privately-retained court reporter, who may appear in-person or remotely. Parties must comply with the Court's policy on the use of privately-retained court reporters, available at https://www.occourts.org/media/pdf/Private_Retained_Court_Reporter_Policy.pdf.

1	Tazeroni vs. Mirbaz 30-2025- 01522316	<u>Demurrer</u> Cross-Defendant Ali Tazerouni’s Demurrer to First-Amended Cross-Complaint is OVERRULED as to the 1st and 2nd Causes of Action. Cross-Defendant Ali Tazerouni shall file an answer or other pleading in response to the First Amended Cross-Complaint within 10 days of service of the notice of ruling. (See Cal. Rules of Court, rule 3.1320(j).) <u>Pending Motion</u> Cross-Defendant Ali Tazerouni demurs to the 1st and 2nd Causes of Action of the First Amended Cross-Complaint (FAXC) filed by Cross-Complainant Masoud Mirbaz. <u>Meet and Confer</u> The Civil Procedure Code requires that: Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer <i>in person, by telephone, or by video conference</i> with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., § 430.41, subd. (a), italics added.) In addition, “[i]f an amended complaint, cross-complaint, or answer is filed, the responding party shall meet and confer again with the party who filed the amended pleading before filing a demurrer to the amended pleading.” (<i>Ibid.</i>) The demurrer papers must include a declaration stating that the demurring party has complied with the above requirement. (Code Civ. Proc., § 430.41, subd. (a)(3).) Here, Cross-Defendant submitted the declaration of his counsel stating that on March 4, 2026, Cross-Defendant’s Counsel sent a meet-and-confer letter identifying deficiencies in the Cross-Complaint.
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		(See Decl. of Darius Shahrouzi in Supp. of Dem.; CCP § 430.41 (Shahrouzi Decl.), ¶ 2.) Cross-Defendant's Counsel also states that Cross-Complainant then filed a First Amended Cross-Complaint, but that "the deficiencies remain." (See <i>id.</i>, ¶¶ 3-4.) Cross-Defendant's Counsel does not identify any other efforts to meet and confer that were undertaken before filing this demurrer. Here, Cross-Defendant failed to meet and confer <i>in person, by telephone, or by video conference</i> as required by Section 430.41(a). In addition, Cross-Defendant failed to meet and confer again regarding the First Amended Cross-Complaint after Cross-Complainant filed an amended pleading. Therefore, Cross-Defendant has failed to comply with the requirements of Section 430.41. However, the matter has been fully briefed so that it appears unlikely that further meet and confer efforts would bear fruit. Therefore, the court will consider the demurrer on the merits. However, if Cross-Defendant fails to abide by the Civil Procedure Code in the future, that may delay consideration of Cross-Defendant's motions, and the court may ignore Cross-Defendant's filings or issue sanctions. <u>Standard for Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) For this reason, the court will not decide questions of fact on demurrer. (See <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Instead, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (<i>Serrano v. Priest</i> (1971) 5 Cal.3d
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		584, 591, citation omitted; see <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318). Therefore, the court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) However, “where facts appearing in attached exhibits or judicially noticed documents contradict, or are inconsistent with, the complaint’s allegations, we must rely on the facts in the exhibits and judicially noticed documents.” (<i>Jimenez vs. Mrs. Gooch’s Natural Foods Markets, Inc.</i> (2023) 95 Cal.App.5th 645, 653.) Although courts should take a liberal view of inartfully drawn pleadings, (see Code Civ. Proc., § 452), it remains essential that a pleading set forth the actionable facts relied upon with sufficient precision to inform the responding party of the matters that the pleading party is alleging, and what remedies or relief is being sought, (see <i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413). Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (<i>Schmid v. City and County of San Francisco</i> (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a).) <u>1st Cause of Action (Breach of Oral Contract)</u> “[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821.) For oral contracts, a party must allege that a promise was definite enough to “determine the scope of the duty and the limits of performance.” (<i>Ladas v. Cal. State Auto. Ass’n</i> (1994) 19 Cal. App. 4th 761, 770). There must be a “meeting of the minds on all material points” for a contract to exist. (See <i>Grove v. Grove Valve & Regulator Co.</i> (1970) 4 Cal.App.3d 299, 312 [“The California law is clear
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		that there is no contract until there has been a meeting of the minds on all material points, despite the fact some terms have been agreed orally, or some action has been taken.”].) It is not sufficient that the parties agree on “some of the terms.” (<i>Bustamante v. Intuit, Inc.</i> (2006) 141 Cal.App.4th 199, 215.) Nor is it enough that the “essential terms [are] sketched out, with their final form to be agreed upon in the future.” (<i>Id.</i> at p. 213.) Here, the FAXC alleges that, in or around December 2023, Cross-Defendant purchased a 50% ownership interest in Ruby’s Diner Orange Depot, LLC from Cross-Complainant. (See FAXC, ¶¶ 7-9.) The FAXC also pleads that, in or around November 2024, the parties entered into an oral agreement under which Cross-Defendant would purchase Cross-Complainant’s remaining 50% interest for \$170,000, payable within 30 days. (See <i>id.</i>, ¶¶ 11, 15.) The FAXC asserts that the price was discounted because Cross-Defendant agreed to assume or pay outstanding debts of the company, except that Cross-Complainant would pay 50% of certain EDD and IRS liens and credit card debts from the sale proceeds. (See <i>id.</i>, ¶¶ 16–17.) The FAXC then alleges that Cross-Defendant failed and refused to pay the \$170,000, leaving Cross-Complainant unable to pay the debts he agreed to cover and causing damages of at least \$170,000. (See <i>id.</i>, ¶¶ 18–20.) Here, the FAXC alleges all the elements of the breach of contract cause of action, including that there was a meeting of the minds on all material points of the contract. Cross-Defendant contends that the 1st Cause of Action fails because the FAXC does not specify how debts, offsets, accounting, reconciliation, or ownership transfer were to be handled. However, Cross-Defendant cites to no authority for the proposition that the FAXC must plead the oral contract with that level of specificity. It is sufficient the terms laid out in the complaint or cross-complaint “provide a basis for determining
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		the existence of a breach and for giving an appropriate remedy." (<i>Weddington Productions, Inc. v. Flick</i> (1998) 60 Cal.App.4th 793, 811.) The FAXC does exactly that by alleging that Cross-Defendant agreed to pay Cross-Complainant \$170,000 for a 50% membership interest in the company and breached the oral agreement by failing to make payment. Cross-Defendant also argues that the FAXC fails to allege Cross-Complainant's performance or satisfaction of conditions precedent under the oral agreement. Specifically, Cross-Defendant points to the fact that the FAXC does not allege that Cross-Complainant provided a full accounting, that all liabilities were disclosed, and that any conditions tied to debt reconciliation were satisfied. With respect to the first two actions stated above, the FAXC does not contain any allegations that these were obligations or conditions precedent of the oral agreement. Thus, Cross-Complainant is not required to plead performance with respect to those actions. With regard to the last action, Cross-Complainant may plead either performance <i>or excuse for nonperformance</i>. Here, the FAXC asserts that "[b]ecause Cross-Complainant has not received the agreed upon sale price, he has been unable to pay any of the debts incurred by Ruby's in 2024 that he agreed to pay." (FAXC, ¶ 19.) Reading the FAXC liberally, as the court must do, the FAXC adequately pleads excuse for nonperformance of Cross-Complainant's obligations under the oral agreement. Further, the FAXC alleges that Cross-Complainant agreed to sell his remaining 50% interest for \$170,000, that payment was due within 30 days, and that Cross-Defendant failed to pay any amount. (See <i>id.</i>, ¶¶ 15–20.) The court may consider reasonable inferences from the facts alleged and it is a reasonable inference here that Cross-Complainant's further performance
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		was excused by Cross-Defendant's nonpayment of the amount due under the oral agreement. Therefore, the court will overrule the demurrer to the 1st Cause of Action. <u>2nd Cause of Action (Fraud - Intentional Misrepresentation)</u> "The elements of fraud, which gives rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.'" (<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 638, quoting 5 Witkin, Summary of Cal. Law (9th ed. 1988) Torts, § 676, p. 778.) Intentional misrepresentation is form of fraud, (<i>Conte v. Wyeth, Inc.</i> (2008) 168 Cal.App.4th 89, 101 fn.7), and the elements are nearly identical: "(a) misrepresentation, false representation, concealment, or nondisclosure; (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage," (<i>Charnay v. Cobert</i> (2006) 145 Cal.App.4th 170, 184). In this case, the FAXC alleges that, in or around November 2024, Cross-Defendant represented that he would pay Cross-Complainant \$170,000 for his portion of the of the company, provided that Cross-Complainant would use part of that payment to pay Cross-Complainant's share of debts owed to vendors, EDD, and the IRS. (See FAXC, ¶ 22.) The FAXC then pleads that Cross-Defendant knew that Cross-Complainant lacked the funds to pay those debts without the buyout payment and was relying on Cross-Defendant's payment to do so. (See <i>id.</i>, ¶ 23.) The FAXC also asserts that Cross-Defendant's representations were false when made and that Cross-Defendant knew they were false because he had no intention of paying Cross-Complainant for his interest in the restaurant. (See <i>id.</i>, ¶ 24.) The FAXC alleges that Cross-Defendant used Cross-Complainant's financial position to induce him to accept a reduced price for the 50% interest in the company, that Cross-Defendant intended for Cross-
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		Complainant to rely upon the misrepresentations, and that Cross-Complainant did rely on the misrepresentations because of the parties' long-standing friendship. (See <i>id.</i>, ¶¶ 25–27.) Finally, the FAX pleads that Cross-Defendant's misrepresentations caused Cross-Complainant to suffer harm, because among other things, Cross-Complainant was left unable to pay the agreed upon debts. (See <i>id.</i>, ¶¶ 27–29.) Cross-Defendant contends that the fraud claim merely restates the breach of contract claim. However, the 2nd Cause of Action alleges that Cross-Defendant committed fraud to induce Cross-Complainant to enter into a contract, which is different and separate from the allegations that Cross-Defendant then breached that contract. (See <i>Baker v. Superior Court</i> (1983) 150 Cal.App.3d 140, 146 [explaining that "[The plaintiffs'] fraud in the inducement and breach of contract causes of action arise out of different obligations and different operative facts. [Defendants] Best, Chatham and Williams were obliged to deal honestly with the [plaintiffs] and to perform their contract with them. The fraud in the inducement of the remodeling contract allegedly perpetrated by [Defendants] Best, Chatham and Williams and [Defendant] Best's later breach violated those separate obligations and also involved separate acts at different points in time."].) <u>Pleading Fraud with Specificity</u> Cross-Defendant also argues that the 2nd Cause of Action fails because it is not pleaded with the required specificity. "In California, fraud must be pled specifically" (<i>Lazar vs. Superior Court</i> (1996) 12 Cal.4th 631, 645; see also <i>Linear Technology Corp. v. Applied Materials, Inc.</i> (2007) 152 Cal.App.4th 115, 132 ["Fraud must be pleaded with specificity."].) "Causes of action for intentional and negligent misrepresentation sound in fraud and, therefore, each element must be pleaded with specificity." (<i>Daniels v. Select Portfolio Servicing, Inc.</i> (2016) 246 Cal.App.4th 1150, 1166, overruled on other grounds, <i>Sheen v. Wells Fargo Bank, N.A.</i> (2022) 12 Cal.5th 905, 919-920, 948, fn.12.)
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		As the Court of Appeal has explained: This means: (1) general pleading of the legal conclusion of fraud is insufficient; and (2) every element of the cause of action for fraud must be alleged in full, factually and specifically, and the policy of liberal construction of pleading will not usually be invoked to sustain a pleading that is defective in any material respect. (<i>Wilhelm v. Pray, Price, Williams & Russell</i> (1986) 186 Cal.App.3d 1324, 1331.) "The specificity requirement means a plaintiff must allege facts showing how, when, where, to whom, and by what means the representations were made, and, in the case of a corporate defendant, the plaintiff must allege the names of the persons who made the representations, their authority to speak on behalf of the corporation, to whom they spoke, what they said or wrote, and when the representation was made." (<i>West v. JPMorgan Chase Bank, N.A.</i> (2013) 214 Cal.App.4th 780, 793.) However, "the requirement of specificity is relaxed when the allegations indicate that 'the defendant must necessarily possess full information concerning the facts of the controversy' or 'when the facts lie more in the knowledge of the opposite party.'" (<i>Tarmann v. State Farm Mut. Auto. Ins. Co.</i> (1991) 2 Cal.App.4th 153, 158, quoting <i>Bradley v. Harford Acc. & Indem. Co</i> (1973) 30 Cal.App.3d 818, 825 and <i>Turner v. Milstein</i> (1951) 103 Cal.App.2d 651, 658.) Here, it is true that the FAXC does not provide every detail regarding how, when, where, to whom, and by what means the representations were made to Cross-Complainant. However, this is information that should be within the knowledge of the Cross-Defendant and Cross-Defendant does not contend otherwise. Further, the FAXC pleads specific facts establishing the falsity of the representations when made, Cross-Defendant's knowledge of that falsity, and Cross-Complainant's reasonable reliance on – namely, that Cross-Defendant knew that Cross-Complainant lacked the funds to pay the debts without the buyout payment, that Cross-Defendant
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		had no intention of paying Cross-Complainant and did not payment Cross-Complainant, and that Cross-Complainant relied upon the representations due to this financial position and friendship with Cross-Defendant. Although the fraud cause of action could have been plead with greater specificity, the amount of specificity contained in the FAXC is just barely sufficient. Thus, the court will overrule the demurrer to the 2nd Cause of Action. Cross-Complainant shall give notice of this ruling.
2	Planet Beauty, Inc. vs. New Receiptco Opco LLC 30-2026- 01542120	<u>Demurrer</u> Defendant New Receiptco Opco, LLC dba Domtar's Demurrer to Plaintiff Planet Beauty, Inc.'s Complaint is taken OFF CALENDAR as moot. <u>Pending Action</u> Defendant New Receiptco Opco, LLC dba Domtar demurs to all causes of action of the Complaint filed by Plaintiff Planet Beauty, Inc. <u>Amending the Complaint Moots the Demurrer</u> A party may amend its complaint once without leave of the court at any time before the answer or demurrer is filed, or after a demurrer is filed but before the demurrer is heard if the amended complaint is filed and served no later than the date for filing an opposition to the demurrer. (Code Civ. Proc., § 472.) In addition, "[t]he filing of [an] amended complaint render[s] [a] demurrer moot since 'an amendatory pleading supersedes the original one, which ceases to perform any function as a pleading.'" (<i>Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.</i> (2004) 122 Cal.App.4th 1049, 1054, quoting <i>Foreman & Clark Corp. v. Fallon</i> (1971) 3 Cal.3d 875, 884.) When a plaintiff files an amended complaint in response to a demurrer, the demurrer should be taken off calendar since the

		amended complaint superseded the complaint to which the demurrer was directed. (<i>People ex rel. Strathmann v. Acacia Research Corp.</i> (2012) 210 Cal.App.4th 487, 505-506.) On June 30, 2026, after the instant demurrer was filed, Plaintiff filed the First Amended Complaint for Damages (FAC). The FAC renders this demurrer to the original Complaint moot. Therefore, the court will take the demurrer strike off calendar. Plaintiff shall give notice of this ruling.
3	Prado vs. General Motors LLC 30-2025-01459651	<u>Motion for Attorney's Fees and Costs</u> Plaintiff Hermelinda Prado's Motion for Attorney's Fees, Costs, and Expenses is GRANTED in part and DENIED in part. Defendant General Motors, LLC is ORDERED to pay to Plaintiff Hermelinda Prado reasonable attorney's fees in the amount of \$22,044 and costs in the amount of \$766.59 within 30 days of service of the notice of ruling. Plaintiff Hermelinda Prado's Request for Judicial Notice in Support of Plaintiff's Motion for Attorneys' Fees is GRANTED as to Exhibit A. (See Evid. Code, § 452, subd. (d).) Plaintiff Hermelinda Prado's Supplemental Request for Judicial Notice ISO Reply ISO Motion for Attorneys' Fees, Costs, and Expenses is DENIED as to Exhibits 1-3. (See Evid. Code, § 452, subd. (d).) Courts do not consider evidence presented in a reply declaration except in extraordinary circumstances and where the other party has an opportunity to respond. (See <i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537 ["The general rule of motion practice, which applies here, is that new evidence is not permitted with reply papers."]; <i>San Diego Watercrafts, Inc. v. Wells Fargo Bank</i> (2002) 102 Cal.App.4th 308, 310 [summary judgment reversed because trial court erred in considering evidence first submitted

	with reply]; <i>Plenger v. Alza Corp.</i> (1992) 11 Cal.App.4th 349, 362, fn.8 [court may consider new evidence presented in reply only in exceptional cases and only if opposing party is given opportunity to respond to new evidence].) Here, Plaintiff has not shown any extraordinary circumstances that would support the court considering these exhibits where Defendant has not had an opportunity to respond to them. <u>Pending Motion</u> Plaintiff Hermelinda Prado moves for an award of attorney's fees in the amount of \$23,546.50 with a multiplier of 1.3 and costs in the amount of \$766.59 from Defendant General Motors, LLC, pursuant to the Song-Beverly Consumer Warranty Act (Song-Beverly Act), Civil Code section 1790, <i>et seq.</i> <u>Timeliness of Motion</u> As an initial matter, Defendant argues that this motion is untimely because it was brought 209 days after settlement. However, as Defendant concedes, the deadline to file a motion for attorney's fees is not based on the date of settlement, but rather the date for filing a notice of appeal. Pursuant California Rules of Court rule 3.1702: A notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court – including attorney's fees on an appeal before the rendition of judgment in the trial court – must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case (Cal. Rules of Court, rule 3.1702, subd. (b)(1).) Defendant also admits that Rule 8.104 states that: [A] notice of appeal must be filed on or before the earliest of: (A) 60 days after the superior court clerk serves on the party filing the notice of appeal a document entitled "Notice
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		of Entry" of judgment or a filed-endorsed copy of the judgment, showing the date either was served; (B) 60 days after the party filing the notice of appeal serves or is served by a party with a document entitled "Notice of Entry" of judgment or a filed-endorsed copy of the judgment, accompanied by proof of service; or (C) 180 days after entry of judgment. (Cal. Rules of Court, rule 8.104, subd. (a)(1).) Here, no judgment has been issued. Thus, the time to file a notice of appeal or a notice of motion for attorney's fees has not begun to run. (fn.1) (fn.1) Further, California Rules of Court rule 8.108 "operates only to extend the time to appeal otherwise prescribed in rule 8.104(a); it does not shorten the time to appeal. If the normal time to appeal stated in rule 8.104(a) is longer than the time provided in this rule, the time to appeal stated in rule 8.104(a) governs." (Cal. Rules of Court, rule 8.108, subd. (a).) Thus, Rule 8.108 cannot act to make this motion untimely if the motion is otherwise timely under Rule 8.104. Defendant does not dispute that the motion is timely under Rules 3.1702, 8.104, and 8.108. However, Defendant contends that because the settlement in this case calls for the Plaintiff to dismiss the case rather than enter judgment, Defendant is caught in a "catch-22." Defendant argues that the court should treat the settlement date as the judgment date for purposes of the motion. While Defendant points to some case law that a settlement date may be viewed as the judgment date <i>for the purposes of enforcing settlement agreements</i>, it cites to no authority for the proposition that the settlement date should be treated as the judgment date in order to deprive Plaintiff of her right to seek attorney's fees – a right that Defendant specifically agreed in the settlement agreement that Plaintiff had.
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		Nor does Defendant state any good reason to treat the settlement date as the judgment date for purposes of bringing a motion for attorney's fees. Here, the "catch-22" to which Defendant points does not prejudice Defendant. Defendant is not deprived of any right and may freely oppose the motion for attorney's fees in any way allowed by law. On the other hand, Defendant's request would unduly prejudice Plaintiff by depriving her of the right to seek attorney's fees, even where Defendant agreed that Plaintiff has a right to attorney's fees. The prejudice is made worse by the fact that Plaintiff would be deprived of her right without any notice as Defendant has not cited to any statute or case law that imposes a deadline for filing a motion for attorney's fees based on the date of settlement. Finally, Defendant could easily avoid this "catch-22" by including in the settlement agreement a provision that sets a deadline, not based on the date judgment issues, by which Plaintiff must file a motion for attorney's fees. In sum, Defendant's argument of untimeliness is supported neither by the law nor by equity. The court will reject this argument. <u>Standard for Motion for Attorney's Fees</u> Generally, attorney's fees are borne by the party that incurred them. (See <i>Pederson v. Kennedy</i> (1982) 128 Cal.App.3d 976, 978-79). Therefore, a party may recover attorney's fees only if provided for by contract or statute. (See Code Civ. Proc., § 1033.5, subd. (a)(10); see also <i>LNSU # 1, LLC v. Alta Del Mar Coastal Collection Community Association</i> (2023) 94 Cal.App.5th 1050, 1081 ["Each party to an action must pay its own attorney fees unless a statute or contract requires the opposing party to pay them."].) For example, the Song-Beverly Act states that: If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees
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		based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action. (Civ. Code, § 1794, subd. (d).) The legislature understood that “the prospect of having to pay attorney fees even if one wins a lawsuit can serve as a powerful disincentive to the unfortunate purchaser of a malfunctioning automobile.” (<i>Murillo v. Fleetwood Enter., Inc.</i> (1998) 17 Cal.4th 985, 994.) Thus, by allowing an award of attorney’s fees to the prevailing plaintiff in a Song-Beverly Act case, “our Legislature has provided injured consumers strong encouragement to seek legal redress in a situation in which a lawsuit might not otherwise have been economically feasible.” (<i>Ibid.</i>) On a motion for attorney’s fees, the moving party has the burden of establishing entitlement to an award. (<i>ComputerXpress, Inc. v. Jackson</i> (2001) 93 Cal.App.4th 993, 1020.) <u>Prevailing Party</u> The Song-Beverly Act does not define the term “prevailing buyer”. As explained by the Court of Appeal in <i>Duff v. Jaguar Land Rover North America, LLC</i> (2022) 74 Cal.App.5th 491, “the courts have split regarding how to define this term when it comes to the award of attorney fees.” (<i>Id.</i> at p. 501.) However, the settlement agreement in this case provides that “GMC LLC shall pay to Plaintiff Counsel, (select one option below): (i) a check in the amount of Attorney’s Fees and Costs payable to Plaintiff Counsel . . . OR (ii) Reasonable attorney’s fees, costs, and expenses pursuant to subdivision (d) of Section 1794 of the Civil Code shall be determined by the court by way of a noticed motion. Defendant agrees Plaintiff is the prevailing party for purposes of said fee motion.” (Decl. of Logan Hensley in Supp. of Pltf.’s Mot. for Att’ys’ Fees, Costs, and Expenses (Hensley Decl.), ¶ 11, Exh. B at p. 1.) Thus, there is not dispute that Plaintiff is the
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		"prevailing buyer" who is entitled to attorney's fees. <u>Lodestar Calculation of Attorney's Fees</u> The calculation of attorney's fees under the Song-Beverly Act is based on the lodestar method, which multiplies the number of hours reasonably expended by a reasonable hourly rate. (<i>Graciano v. Robinson Ford Sales</i> (2006) 144 Cal.App.4th 140, 154; <i>Robertson v. Fleetwood Travel Trailers of California, Inc.</i> (2006) 144 Cal.App.4th 785, 817-819.) When using this method, the court begins by determining the reasonable hours the prevailing party's attorney spent on the case and multiplying that number by the reasonable hourly rate. (See <i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1131-1134; <i>Christian Research Institute v. Alnor</i> (2008) 165 Cal.App.4th 1315, 1321.) However, the prevailing party should not receive a "windfall" through an award of reasonable attorney's fees. (<i>Ketchum vs. Moses, supra</i>, 24 Cal.4th at p. 1132.) Thus, a prevailing buyer under the Song-Beverly Act has the burden of "showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.'" (<i>Levy v. Toyota Motor Sales, U.S.A., Inc.</i> (1992) 4 Cal.App.4th 807, 816.) "To that end, the court may require [a] defendant[] to produce records sufficient to provide 'a proper basis for determining how much time was spent on particular claims.' The court also may properly reduce compensation on account of any failure to maintain appropriate time records." (<i>ComputerXpress, Inc. v. Jackson, supra</i>, 93 Cal.App.4th at p. 1020, quoting <i>Hensley v. Eckerhart</i> (1983) 461 U.S. 424, 437, fn.12.) However, once an attorney has presented evidence of her or his actual time spent and hourly rate charged, the time and hourly rate are presumed to be reasonable. (<i>Mandel v. Lackner</i> (1979) 92 Cal.App.3d 747, 761; see <i>Horsford v Board of Trustees of California State University</i> (2005) 132 Cal.App.4th 359, 396 ["[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous."];
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		<i>Raining Data Corp. v. Barrenechea</i> (2009) 175 Cal.App.4th 1363, 1367 [declarations of counsel are "sufficient to meet the burden of establishing the reasonableness of the fees incurred, without the need to produce copies of counsel's detailed billing statements"].) "As the trial court 'is in the best position to value the services rendered by the attorneys in his or her courtroom,' we leave it in the trial court's discretion to determine the amount of reasonable attorney fees and costs to award . . . under the lodestar method." (<i>Frym v. 601 Main Street LLC</i> (2022) 82 Cal.App.5th 613, 622, quoting <i>569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.</i> (2016) 6 Cal.App.5th 426, 437; see also <i>Ketchum v. Moses</i>, <i>supra</i>, 24 Cal.4th at p. 1132 ["The trial judge is 'the best judge of the value of professional services rendered in his court.'"].) <u>Reasonable Hourly Rate</u> The reasonable hourly rate is based on the reasonable market value of the attorney's services. (See <i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1094-1095 or <i>PLCM Group, Inc. v. Drexler</i>, <i>supra</i>, 22 Cal.4th at p. 1094-1095.) This standard applies regardless of how much the attorney actually charged the client. (See <i>ibid.</i>) Thus, the same reasonable hourly rate will apply whether the attorney charged nothing for their services, charged below-market or discounted rates, represented the client on a contingent fee basis, or are in-house counsel paid a fixed salary. To determine the reasonable market value of the legal services provided, the court must look to the range of reasonable rates charged by and judicially awarded to comparable attorneys for comparable work. (See <i>Children's Hospital & Medical Center v. Bonta</i> (2002) 97 Cal.App.4th 740, 783; see also <i>PLCM Group v. Drexler</i>, <i>supra</i>, 22 Cal.4th at p. 1095 ["[The] reasonable hourly rate is that prevailing in the community for similar work."].) The party requesting fees has the initial burden of producing evidence sufficient to support the reasonableness of the billing rates requested. (See <i>Davis v. City of San Diego</i> (2003) 106 Cal.App.4th 893, 903.) If the moving party meets its burden, the burden
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		shifts to the opposing party to produce admissible evidence sufficient to show that the rates requested are not reasonable. (See <i>Graciano v. Robinson Ford Sales, Inc.</i>, <i>supra</i>, 144 Cal.App.4th at p. 155 [finding court erred in reducing rates where evidence of reasonableness of rate requested was undisputed].) "In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases." (<i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 41, citations omitted; see also <i>Heritage Pacific Financial, LLC v. Monroy</i> (2013) 215 Cal.App.4th 972, 1009.) The value of legal services performed in a case is a matter of which the trial court has its own expertise. (<i>PLCM Group v. Drexler</i>, <i>supra</i>, 22 Cal.4th at p. 1096.) The trial court may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. (<i>Ibid.</i>) "It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court." (<i>Melnyk v. Robledo</i> (1976) 64 Cal.App.3d 618, 623.) Here, Plaintiff requests the following hourly rates for her counsel: attorney Logan Hensley at \$500 per hour; attorney Laura Goolsby at \$600 per hour; attorney Oliver Tomas at \$550 per hour; (4) paralegal Virginia Walls at \$250 per hour; paralegal Clarence Serrano at \$200-\$270 per hour; case manager Jennifer Romo at \$200-\$225 per hour; case manager Caleth Ibarra at \$200 per hour; case manager Nikolas Mancera at \$150 per hour; and a repair chronology drafter at \$150 per hour. Plaintiff provides support these requested hourly rates. (See Hensley Decl., ¶ 9.) Plaintiff also requested that the court take judicial of a minute order issued in a Song-Beverly Act matter in the Los Angeles Superior Court, wherein the court found the rates of up to \$500 per hour reasonable. (See Pltf.s Request for Judicial Notice in Supp. of Pltf.'s Mot. for Atty's' Fees, Exh. A.)
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		Here, Plaintiff has met her burden to support the reasonableness of the hourly rates she is requesting and the burden shifts to Defendant. Defendant, however, does not argue or present evidence to show that the hourly rates requested by Plaintiff are unreasonable. Based on the evidence presented and its own knowledge and familiarity with the relevant legal market, the court finds the rates requested by Plaintiff to be reasonable. <u>Hours Reasonably Expended</u> "An award of attorney fees 'should ordinarily include compensation for <i>all</i> the hours <i>reasonably spent</i>, including those relating solely to the fee.'" (<i>Frym v. 601 Main Street LLC</i> (2022) 82 Cal.App.5th 613, 619, quoting <i>Ketchum v. Moses, supra</i>, 24 Cal.4th at p. 1131; see also <i>id.</i> at p. 1141 [award of attorney's fees "may include not only the fees incurred with respect to the underlying claim, but also the fees incurred in enforcing the right to mandatory fees."].) The prevailing party has the burden to present verified time records showing the hours spent on the case." (<i>Horsford v. Board of Trustees</i> (2005) 132 Cal.App.4th 359, 396.) However, once they are properly admitted, "the verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (<i>Ibid.</i>) In addition, the declarations of counsel are "sufficient to meet the burden of establishing the reasonableness of the fees incurred, without the need to produce copies of counsel's detailed billing statements." (<i>Raining Data Corp. v. Barrenechea</i> (2009) 175 Cal.App.4th 1363, 1367.) Nonetheless "[a] trial court may not rubber stamp a request for attorney fees, but must determine the number of hours reasonably expended." (<i>Donahue v. Donahue</i> (2010) 182 Cal.App.4th 259, 271-272.) Therefore, prevailing parties should be compensated only for hours reasonably spent on
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	fee-related issues. (<i>Serrano v. Unruh</i> (1982) 32 Cal.3d 621, 635.) As the Court of Appeal has explained: Although [] billing statements in support of a fee request form the “starting point” for determining the “hours reasonably expended” in a lodestar calculation, the trial court is not bound to accept these hours and may reduce them if it concludes the attorneys performed work unrelated to the [matter], or represented work that was unnecessary or duplicative or excessive in light of the issues fairly presented. (<i>569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.</i>, <i>supra</i>, 6 Cal.App.5th at p. 441, quoting <i>Christian Research Institute v. Alnor</i>, <i>supra</i>, 165 Cal.App.4th at pp. 1324, 1326; see <i>Graham v. DaimlerChrysler Corp.</i> (2004) 34 Cal.4th 553, 579-580 [court need not include inefficient or duplicative efforts when awarding attorney’s fees].) In addition: A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether. “If . . . the Court were required to award a reasonable fee when an outrageously unreasonable one has been asked for, claimants would be encouraged to make unreasonable demands, knowing that the only unfavorable consequence of such misconduct would be reduction of their fee to what they should have asked in the first place. To discourage such greed, a severer reaction is needful” (<i>Ibid.</i>, quoting <i>Brown v. Stackler</i> (7th Cir. 1980) 612 F.2d 1057, 1069.) For example, the court may reduce the number of hours based on considerations of “whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended.” (<i>Christian Research Institute v. Alnor</i>, <i>supra</i>, 165 Cal.App.4th at p. 1320.) In challenges to the reasonableness of the number of hours billed, “it is the burden of the challenging
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		party to point to the specific items challenged, with a sufficient argument and citations to the evidence." (<i>Premier Medical Mgmt. Sys., Inc. v. California Ins. Guarantee Ass'n</i> (2008) 163 Cal.App.4th 550, 564.) "General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (<i>Ibid.</i>; see <i>Levy v. Toyota Motor Sales, U.S.A., Inc.</i> (1992) 4 Cal.App.4th 807, 816 [party seeking attorney fees has "the burden of showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.'"].) In this case, Plaintiff presented billing records that Plaintiff's Counsel or their staff spent 61.10 hours on this matter, representing attorney's fees of \$21,796.50. (See Hensley Decl., ¶ 12, Exh. C.) Plaintiff also estimates that her counsel will expend 3.5 hours of attorney time to review the opposition to the motion and to draft a reply to the opposition. Defendant challenged specific time entries of Plaintiff's Counsel on the basis that they included block-billed clerical and administrative time, excessive time spent on tasks, administrative time by attorneys, and time for duplicative tasks. <u>Block-Billed Clerical and Administrative Time</u> "Of course, purely clerical or secretarial tasks should not be billed at a paralegal rate, regardless of who performs them." (<i>Missouri v. Jenkins by Agyei</i> (1989) 491 U.S. 274, 288, fn.10.) Furthermore, "[t]rial courts retain discretion to penalize block billing when the practice prevents them from discerning which tasks are compensable and which are not." (<i>Heritage Pacific Financial, LLC v. Monroy</i> (2013) 215 Cal.App.4th 972, 1010). Here, the court will deduct the following time, which was for administrative work only or administrative work that was not properly segregated from legal work: • 03/24/2026 – Review File: calendared and tasked deadlines re MAF, and updates case status. (Virgina Walls, 0.30h, \$75.00) • 08/07/2025 – Review file and case events
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		on the clio calendar confirmed upcoming hearing and status of case. (Virgina Walls, 0.10h, \$25.00) • 07/31/2025 – Team huddle/calendar review: mediation. (Virgina Walls, 0.10h, \$25.00) • 07/24/2025 – Confirmed receipt of caption and mediation date. Updated calendar. (Virgina Walls, 0.20h, \$50.00) • 07/16/2025 – CMS & NPJF; filed with the court; served and saved. updated calendar. (Virgina Walls, 0.60h, \$150.00) • 04/15/2025 – Receipt of Def's Answer; NOD Plaintiff; SPO; MC Letter. Calendared dates and deadlines; (Virgina Walls, 1.00h, \$250.00) • 02/21/2025 – Receipt and review of email re Conformed POS; calendared Service date. (Virgina Walls, 0.20h, \$50.00) • 02/13/2025 – Receipt/review of Court's Notice of CMC; reviewed ROA; calendared S&C filing; CMC date; and associated deadlines. update matter dashboard re case number, judge name, courthouse and dept. (Virgina Walls, 0.30h, \$75.00) • 12/10/2024 – Review File: DL sent via certified (Nikolas Mancera, 0.20h, \$30.00) • 12/09/2024– Review File: DL sent for review. (Nikolas Mancera, 0.20h, \$30.00) • 11/18/2024 – Review File: Reviewed documents, created folders, assigned tasks to case manager, updated case details. (Jennifer Romo, 0.50h, \$112.50) • 11/19/2024 – Review File: Welcome email and Welcome call. (Nikolas Mancera, 0.20h, \$30.00) <u>Excessive Time</u> Defendant contends Plaintiff's Counsel and their staff spent an excessive amount of time completing some tasks. However, the court has reviewed the billing entries
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		to which Defendant points and finds that the amount of time spent was reasonable given the work that was done. <u>Administrative Tasks by Attorneys</u> Defendant also argues that attorneys billed time for administrative tasks, which are not recoverable as attorney's fees. However, the court has reviewed the billing entries to which Defendant points and finds that the work done by attorneys was legal and not administrative, and was reasonable under the circumstances. <u>Duplicative Tasks</u> Defendant next asserts that some of the time billed by Plaintiff's Counsel duplicated efforts by other Plaintiff's Counsel or their staff, or was otherwise duplicative. The court has reviewed the billing entries and finds that, to the extent Plaintiff's Counsel and their staff did the same work, such work was reasonable in light of Plaintiff's Counsel's obligation to review the work done by their staff. Further, the other billing entries to which Defendant refers were reasonable and not duplicative except that the court will deduct 1.2 hours of Attorney Hensley's time spent communicating with counsel on the same day that Attorney Hensley billed 1.8 hours to attend mediation. Attorney Hensley could have communicated with his client at the mediation and there was no need to spend additional time communicating with the client outside of the mediation. <u>Multiplier</u> The court also has the discretion to increase or decrease the lodestar figure by applying a positive or negative multiplier based on a variety of factors that the court did not consider when determining the lodestar figure. (<i>Northwest Energetic Servs., LLC v. California Franchise Tax Bd.</i> (2008) 159 Cal.App.4th 841, 879-82; <i>Graciano v. Robinson Ford Sales</i>, <i>supra</i>, 144 Cal.App.4th at p. 154.) As the Court of Appeal has explained:
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		The lodestar . . . may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (<i>Id.</i> at p. 154, quoting <i>Ketchum v. Moses, supra</i>, 24 Cal. 4th at p. 1132.) “The purpose of such adjustment is to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services.” (<i>Ketchum v. Moses, supra</i>, 24 Cal. 4th at p. 1132.) Nonetheless, the court is not required to impose a multiplier; the decision is discretionary. (See <i>Galbiso v. Orosi Pub. Util. Dist.</i> (2008) 167 Cal.App.4th 1063, 1089; <i>Nichols v. City of Taft</i> (2007) 155 Cal.App.4th 1233, 1241.) Plaintiff requests a lodestar multiplier of 1.3 on the basis that Plaintiff’s counsel undertook the representation on a purely contingent basis, advanced substantial time and expenses without guarantee of payment, and endured extended delay before recovery. While Plaintiff’s Counsel took the case on a contingency basis, Plaintiff has not shown that the risk of not prevailing were substantial or out of the ordinary. In addition, the case settled less than seven months after the Complaint was filed. Further, this appears to be a routine lemon law case that was not so novel or difficult, nor the skill displayed by counsel so outstanding as to warrant a multiplier, in addition to the substantial hourly rates already approved. (See <i>Rahman v. FCA US LLC</i> (C.D. Cal. 2022) 594 F.Supp.3d 1199, 1207 [ruling that no multiplier warranted for a “largely routine lemon law case”].) The court will exercise its discretion and decline to apply a multiplier in this case.
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		<u>Costs</u> Generally, the prevailing party is entitled, as a matter of right, to recover costs in any action or proceeding. (See Code Civ. Proc., § 1032, subd. (b); <i>Foothill-De Anza Comm. College Dist. v. Emerich</i> (2007) 158 Cal.App.4th 11, 29-30.) In addition, the Song-Beverly Act specifically states that “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).) Civil Procedure Code section 1033.5 enumerates the specific costs that are recoverable by the prevailing party in a civil action. (See Code Civ. Proc, §§ 1032, subd. (b), 1033.5.) Section 1033.5 also provides that the court may award costs not expressly described in the statute for expenses that are “reasonably necessary to the conduct of the litigation” and are “reasonable in amount.” (Code Civ. Proc, § 1033.5, subd. (c)(2)-(4).) While the trial court has discretion to decide whether a cost item was reasonably necessary, the trial court does not have discretion to award a cost item that is not statutorily authorized. (See <i>Ladas v. California State Auto. Ass’n</i> (1993) 19 Cal.App.4th 761, 774.) To recover costs, the prevailing party must file and serve a memorandum of costs “within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first.” (Cal. Rules of Court, rule 3.1700(a).) The nonprevailing party then has 15 days after service of the memorandum of costs to file a motion to strike a cost altogether, or to tax the cost
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		and reduce it. (Cal. Rules of Court, rule 3.1700, subd. (b).) If the items on a memorandum of costs appear to be proper on their face, the verified memorandum of costs is <i>prima facie</i> evidence of their validity and the burden is on the party seeking to strike or tax costs to show they were not reasonable or necessary. (<i>Ladas v. California State Auto. Ass'n, supra</i>, 19 Cal.App.4th at p. 774.; see also <i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 131 ["If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they are not reasonable or necessary."].) Here, Plaintiff seeks \$766.59 in costs and provides evidence to support these costs, which primarily consist of filing and service fees, which are recoverable. (See Hensley Decl., Exh. C.) Plaintiff also filed a memorandum of costs that included these costs. (See ROA #58, ¶¶ 1, 5, 14, 15.) (fn.2) (fn.2) Here, Plaintiff's motion for costs appears to be premature as it was filed before entry of judgment or dismissal of the action. However, "a request for fees incurred before the rendition of the judgment in the trial court may be timely even if it is filed prematurely prior to the entry of judgment." (<i>Yuba Cypress Housing Partners, Ltd. v. Area Developers</i> (2002) 98 Cal.App.4th 1077, 1086.) "Such a premature [motion] is to be liberally construed in favor of its sufficiency and treated as filed in accordance with [the rule], particularly where the opposing party is neither misled nor prejudiced by the premature filing." (<i>Ibid.</i>) The memorandum of costs constitutes <i>prima facie</i> evidence of the validity of the costs and the burden shifts to Defendant to show that the costs are not recoverable, that they were not reasonably necessary to the conduct of the litigation, or that they were not reasonable in amount. Defendant failed to present any argument or evidence on the issue of costs. Therefore, the court will award Plaintiff her requested costs. Plaintiff shall give notice of this ruling.
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4	Cliq, Inc. vs. Capital Managers, LLC 30-2021-01220754	<u>Motion for Assignment Order and Restraining Order</u> Plaintiff Cardflex, Inc. d/b/a Cliq's Motion for Assignment Order and Restraining order is GRANTED in part and DENIED in part. Plaintiff Cardflex, Inc. d/b/a Cliq shall submit a proposed order consistent with this ruling. Defendant Capital Managers, LLC's Request for Judicial Notice in Support of Opposition to Plaintiff's Amended Motion for Assignment Order and Restraining Order is GRANTED as to Exhibits 1-2. (See Evid. Code, § 452,, subd. (h); <i>Fontenot v. Wells Fargo Bank, N.A.</i> (2011) 198 Cal.App.4th 256, 265 ["[C]ourts have taken judicial notice not only of the existence and recordation of recorded documents but also of a variety of matters that can be deduced from the documents."], overruled on other grounds, <i>Yvanova v. New Century Mortgage Corp.</i> (2016) 62 Cal.4th 919, 939, fn. 13; <i>City of Alameda v. Sheehan</i> (2024) 105 Cal.App.5th 68, 81 fn.7 [court may take judicial notice of California Secretary of State searches and records].) <u>Pending Motion</u> Plaintiff Cardflex, Inc. d/b/a Cliq moves for an order assigning to Plaintiff "any right, title, interest, claim, or entitlement [Defendant Capital Managers, LLC] has or asserts in residual payments, commissions, and other rights to payment due or to become due, including commissions generated from merchant accounts and independent sales organization agreements, and including, without limitation, commissions paid or payable by Paysafe Services (US) Corp. d/b/a MeritCard or its successors and assignees (hereinafter, 'Paysafe') and Cynergy Data LLC d/b/a Priority Payment Systems or its successors and assignees (hereinafter, 'Priority') (collectively, the 'Paysafe/Priority Commissions'), and any other payment rights of Judgment Debtor from any third-party payor, up to the amount necessary to satisfy the Judgment, including accrued interest, enforcement costs, and attorneys' fees." (Notice of

		Amend. Mot. and Amended Mot. for Assignment Order and Restraining Order at pp. 2:20-3:1.) Plaintiff also seeks a restraining order “prohibiting Judgment Debtor, and any person or entity acting on its behalf or in concert with it, from transferring, assigning, encumbering, redirecting, concealing, dissipating, collecting, receiving, or otherwise disposing of the commissions and payment rights sought to be assigned pending satisfaction of the Judgment or further order of the Court.” <u>Standard for Assignment Order</u> Civil Procedure Code section 708.510 provide that: Except as otherwise provided by law, upon application of the judgment creditor on noticed motion, the court may order the judgment debtor to assign to the judgment creditor or to a receiver . . . all or part of a right to payment due or to become due, whether or not the right is conditioned on future developments (Code Civ. Proc., § 708.510, subd. (a).) Examples of rights to payment that may be ordered to be assigned include but are not limited to: (1) Wages due from the federal government that are not subject to withholding under an earnings withholding order. (2) Rents. (3) Commissions. (4) Royalties. (5) Payments due from a patent or copyright. (6) Insurance policy loan value. (<i>Ibid.</i>) An assignment order may also include a judgment debtor’s right to any future payment that are subject to levy, such as accounts receivable, general intangibles, judgments, and interests such as promissory notes secured by deeds of trust. (<i>See In re Advanced Biomedical,</i>
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Inc. (Bankr. C.D. Cal. Bankr. 2016) 547 B.R. 337, 340-342, 346, [holding an assignment order assigning to Plaintiff "the interest, if any, of . . . [Defendant] . . . in its rights to payment of money due or to become due, whether styled accounts receivable, general intangibles, accounts, deposit accounts, royalties, fees, commissions, or otherwise, from its activities as a provider of clinical laboratory services to physicians, clinics, hospitals, and other healthcare providers . . . and from or through any business entity or person which they are affiliated . . . is assigned to [Plaintiff] . . . to the extent necessary to satisfy the judgment entered in this action in full" transferred title to assigned receivables].)

In determining whether to order an assignment or the amount of the assignment, the court may take into account the following:

- (1) The reasonable requirements of a judgment debtor who is a natural person and of persons supported in whole or in part by the judgment debtor.
- (2) Payments the judgment debtor is required to make or that are deducted in satisfaction of other judgments and wage assignments, including earnings assignment orders for support.
- (3) The amount remaining due on the money judgment.
- (4) The amount being or to be received in satisfaction of the right to payment that may be assigned.

(Code Civ. Proc., § 708.510, subd. (c).)

However, the court may make an assignment "only to the extent necessary to satisfy the money judgment." (Code Civ. Proc., § 708.510, subd. (d).)

Further, if another statutory provision exempts a specific amount of the payment, the court may only assign that part of the payment that exceeds the exempt amount. (See Code Civ. Proc., § 708.510, subd. (f).)

Assignment of Residual Payments, Commissions, and Other Rights to Payment

	Here, Plaintiff has shown that it holds a judgment against Defendant Capital Managers, LLC (Defendant Capital Managers) in the amount of \$3,700,000 and that the entire principal amount remains due. (See ROA #1574; Decl. of Jeffrey Simon in Supp. of Amend. Mot. for Assignment Order and Restraining Order (Simon Decl.), ¶ 4, Exh. C; Decl. of Jeffrey Simon in Supp. of Ex Parte Application for Assignment Order and Restraining Order (Simon Ex Parte Decl.), ¶ 8.) Plaintiff here seeks an assignment order of all rights to residual payments, commissions and other rights to payments payable to Defendant Capital Managers by two entities —Paysafe Services (US) Corp. d/b/a MeritCard (Paysafe) and Cynergy Data LLC d/b/a Priority Payment Systems (Priority) — as well as their unidentified successors or assigns, and “any [other] third-party payor.” Defendant Capital Managers contends that that Plaintiff has failed to establish that Defendant Capital Managers has a right to payment from Paysafe, Priority, or any third-party payor. Defendant Capital Managers is correct that Plaintiff fails to show that Defendant Capital Managers possesses any assignable property (i.e., right to payment) relating to any third-party payor. However, Plaintiff does provide evidence that “Paysafe and Priority residuals were redirected to Capital Managers” by way of the three Portfolio Purchase Agreements. (See Simon Decl., ¶ 9, Exh. G at p. 68:22-23). Plaintiff also shows that as of January 2024, Defendant Capital Managers continued to receive some income from those agreements in the form of a “couple of deposits each month.” (<i>Id.</i>, ¶ 7, Exh. E at p. 10:19-20; see also <i>id.</i>, Exh. F at p. 6:10-11.) Defendant Capital Managers argues that Plaintiff fails to present any evidence that there are any specific arrangements between it and Paysafe or Priority by which it is currently receives any payments from them. However, Defendant Capital Managers does not point to any authority that requires Plaintiff to meet such a high standard. The case law only requires that Plaintiff show that the right to payment is
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		concrete and not mere speculation, which Plaintiff has done. Defendant Capital Managers also points to the fact that Defendant Eventus Holdings LLC has posted a \$2.2 million bond that has stayed enforcement of the judgment. However, the posting of the bond only stays enforcement of the judgment against Defendant Eventus Holdings. (See Code Civ. Proc., § 917.1). It does not stay enforcement of the judgment against Defendant Capital Managers. Defendant Capital Managers next argues that any assignment order would be ineffective because Defendant's Counsel holds a senior lien on Defendant Capital Managers' assets, having perfected its security interest in "[a]ll of debtor's assets." (See Decl. of Oliver D. Griffin in Supp. of Opp'n to Pltf.'s Amend. Mot. for Assignment Order and Restraining Order, Exh.s 1-2.) However, the evidence does not show that the assignment order would be ineffective as a matter of law, such that the court should not exercise its discretion to issue the assignment order. First, Defendant's Counsel's lien may be voidable under the Uniform Voidable Transactions Act. Defendant's Counsel filed its UCC-1 Financing Statement on February 17, 2025, over 3 months <i>after</i> the jury verdict finding Plaintiff was entitled to recover over \$3 million in damages from Defendant Capital Managers. "Whether a conveyance was made with fraudulent intent is a question of fact" which cannot be decided in a motion such as this one. (<i>Annod Corp. v. Hamilton & Samuels</i> (2002) 100 Cal.App.4th 1286, 1294; see Civil Code, § 3439.04, subd. (b) [listing "badges of fraud" that may be considered in determining fraudulent intent].) Second, Defendant Capital Managers is a Delaware LLC but Defendant's Counsel attempted to perfect its lien with the California Secretary of State. Both Delaware and California require that a creditor file a financing statement in order to perfect a lien. (See Code Civ. Proc., § 697.50; 6 Del. C. § 9-310.)
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		In addition, both Delaware and California law provide that: Except as otherwise provided in this section, while a debtor is located in a jurisdiction, the local law of that jurisdiction governs perfection, the effect of perfection or nonperfection, and the priority of a security interest in collateral. (Cal. U. Com. Code, § 9301, subd. (1); 6 Del. C. § 9-301(1).) Where the debtor has only one place of business, the debtor's location is that place of business; and where the debtor has more than one place of business, its "location" is where the chief executive office is located. (Cal. U. Com. Code, § 9307, subd. (b); 6 Del. C. § 9-307, subd. (b).) Defendant Capital Manager's Verified Cross-Complaint states under penalty of perjury that it is "organized and existing under the laws of the state of Delaware." (See ROA # 41, ¶ 1.) The Complaint also alleges that Defendant Capital Manager's principal place of business is in Delaware. (See Compl., ¶ 6.) Therefore, if Defendant Capital Managers is located in Delaware, a financing statement filed with the California Secretary of State might not perfect the lien on Defendant Capital Manager's assets. Third, even if Defendant's Counsel has a senior lien on rights to payment owned by Defendant Capital Managers, there is no evidence that the amount of debt secured by Defendant's Counsel' security interest exceeds the Paysafe and Priority income streams, such that an assignment order would be ineffective. For these reasons, the court will grant the motion with respect to issuing an assignment order as to any right to payment from Paysafe and Priority to Defendant Capital Managers. <u>Standard for Restraining Order</u> "When an application is made pursuant to Section 708.510 or thereafter, the judgment creditor may apply to the court for an order restraining the judgment debtor from assigning or otherwise disposing of the right to payment that is sought to
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		be assigned.” (Code Civ. Proc., § 708.520, subd. (a).) The court may grant the restraining order “upon a showing of need for the order” and also “may require the judgment creditor to provide an undertaking.” (Code Civ. Proc., § 708.520, subd. (b).) Here, Plaintiff submits no evidence that Defendant Capital Managers has attempted to hide, transfer, distribute, or otherwise dissipate its assets, such that there is a need for a restraining order. Plaintiff argues that the fact that Defendant Eventus Holdings sold or transferred its assets raises an inference of misconduct and that inference may be imputed onto Defendant Capital Managers because both companies are wholly or majority-owned by Defendant Sabin Burrell However, the conduct by Defendant Eventus Holdings, however, did not affect Plaintiff’s ability to collect on the judgment against Eventus. Defendant Eventus Holdings posted a \$2.2 million bond to stay enforcement of its judgment. Thus, the court will deny the motion with respect to issuing a restraining order against Defendant Capital Managers. Plaintiff shall give notice of this ruling.
5	Crystalynn Holding, LLC vs. SCP Food Hall LLC 30-2023-01324205	<u>Motion to Be Relieved as Counsel</u> Counsel Karen Lee Hallock’s, Megan A. Divine’s, and DLA Piper LLP (US)’s Motion to Be Relieved as Counsel for Plaintiff Utopia Oriental Investment LLC is GRANTED Counsel Karen Lee Hallock, Megan A. Divine, and DLA Piper LLP (US) are ORDERED to submit to this court a proposed Order Granting Attorney’s Motion to Be Relieved as Counsel – Civil (Form MC-053), that is completely and correctly filled out, within 10 days of this ruling. Within 15 days of receiving the signed Form MC-053 back from the court, Counsel Karen Lee Hallock, Megan A. Divine, and DLA Piper LLP (US) are ORDERED to serve Plaintiff Utopia Oriental

		Investment LLC with the signed Form MC-053, notice of the Order to Show Cause hearing set forth below, and notice of this ruling, in the manner described in Rules of Court rule 3.1362(d). Counsel Karen Lee Hallock, Megan A. Divine, and DLA Piper LLP (US) shall be relieved as counsel of record for Plaintiff Utopia Oriental Investment LLC effective upon the filing of a proof of service showing timely service of the signed Form MC-053, notice of the Order to Show Cause hearing, and notice of this ruling. The Court SETS a hearing on an Order to Show Cause re: Dismissing the Complaint of Plaintiff Utopia Oriental Investment LLC for Failure to Retain Counsel on October 1, 2026, at 10:00 am in Department N15. <u>Pending Motion</u> Counsel Karen Lee Hallock, Megan A. Divine, and DLA Piper LLP (US) (Counsel) move to be relieved as counsel for Plaintiff Utopia Oriental Investment LLC (Plaintiff Utopia). <u>Standard to Be Relieved as Counsel</u> "The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination . . . [u]pon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284.) The notice of motion and motion to be relieved as counsel under Civil Procedure Code section 284 shall be directed to the client and shall be made on the Judicial Council's Notice of Motion and Motion to Be Relieved as Counsel-Civil form (Form MC-051). (Cal. Rules of Court, rule 3.1362(a).) No memorandum is required for the motion. (See Cal. Rules of Court, rule 3.1362(b).) However, "[t]he motion to be relieved as counsel must be accompanied by a declaration on the <i>Declaration in Support of Attorney's Motion to Be Relieved as Counsel – Civil</i> (form MC-052). The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing
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		a consent under Code of Civil Procedure section 284(1)." (Cal. Rules of Court, rule 3.1362(c), italics original.) In addition, "[t]he proposed order relieving counsel must be prepared on the <i>Order Granting Attorney's Motion to Be Relieved as Counsel--Civil</i> (form MC-053) and must be lodged with the court with the moving papers." (Cal. Rules of Court, rule 3.1362(e), italics original.) Motions to be relieved as counsel "must be served on the client and on all other parties who have appeared in the case" and service must be made by "personal service, electronic service, or mail." (Cal. Rules of Court, rule 3.1362(d).) If the motion is served by mail, it shall be accompanied by a declaration stating facts showing either that (1) the service address is the current residence or business address of the client or (2) the service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. (Cal. Rules of Court, rule 3.1362(d)(1).) "As used in this rule, 'current' means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current." (<i>Ibid.</i>) If the motion is served by electronic mail, "it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address." (Cal. Rules of Court, rule 3.1362(d)(2).) The motion may be brought on various grounds, some of which include the client's failure to pay attorney fees, (<i>People v. Prince</i> (1968) 268 Cal.App.2d 398, 406); the client's insistence on an action that is not justified under existing law or by good faith argument, (<i>Estate of Falco v. Decker</i> (1987) 188 Cal.App.3d 1004, 1015); and a conflict of interest between counsel and the client, (<i>Aceves v. Superior Court</i> (1996) 51 Cal.App.4th 584, 592.)
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		However, under the Rules of Professional Conduct, “a member shall not terminate a representation until the lawyer has taken reasonable steps to avoid reasonably foreseeable prejudice to the rights of the client, such as giving the client sufficient notice to permit the client to retain other counsel, and complying with paragraph (e).” (Rules Prof. Conduct, rule 1.16(d); see <i>Ramirez v. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915.) Thus, the court has discretion to deny a motion to be relieved as counsel where discharging counsel would result in “undue prejudice to the client’s interests,” (<i>Ramirez vs. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915), or “an unreasonable disruption of the orderly processes of justice,” (<i>People v. Ortiz</i> (1990) 51 Cal.3d 975, 979). The court may also deny an attorney’s request to withdraw “where such withdrawal would work an injustice or cause undue delay in the proceeding”. (<i>Mandell v. Superior Court</i> (1977) 67 Cal.App.3d 1, 4.) However, such discretion is to be exercised reasonably. (<i>Ibid.</i>) In this case, Counsel has complied with the requirements of the California Rules of Court, including serving the client with the motion papers by mail at the client’s last known address and confirming within the last 30 days that the address is the client’s current address. Counsel also has declared a justifiable reason to be relieved as counsel — there has been a breakdown in communications and a breach of the material terms of the engagement agreement between Counsel and Plaintiff Utopia, making it unreasonably difficult for Counsel to carry out the engagement and its employment effectively. In addition, the only hearings scheduled in this case are a Case Management Conference and an Order to Show Cause re: Sanctions/Dismissal Failure to Prosecute Defendant Kewen Morgan Zhang, which are not set until October 1, 2026. Thus, Plaintiff Utopia will have sufficient time to find new counsel and will not be unduly prejudiced in its ability to litigate the case. Further, it does not appear that there is much action that Plaintiff Utopia can take in this action.
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		Judgment has been entered with respect to Plaintiff Utopia and Defendants SCP Food Hall LLC and SCP Fall Manger LLC. (See ROA #57.) In addition, Plaintiff Utopia has dismissed all of its claims against the only other named Defendant, Kewen (Morgan) Zhang. (See ROA #105.) Thus, there does not appear to be any claims pending between Plaintiff Utopia and any named Defendants. In any case, no opposition has been filed setting forth prejudice to Plaintiff Utopia or any other party should the court grant the motion to be relieved as counsel. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue].) Therefore, the court will grant the motion to be relieved as counsel. However, the proposed order submitted by Counsel is now out of date, and the court will require Counsel to submit a new proposed order that is completely and correctly filled out. In addition, Plaintiff Utopia is a corporation, limited liability company, or other artificial legal entity that cannot represent itself and must retain counsel to act on its behalf in court. (See <i>Gamet v. Blanchard</i> (2001) 91 Cal.App.4th 1276, 1284 fn.5; <i>Rogers v. Sonoma County Municipal Court</i> (1988) 197 Cal.App.3d 1314, 1318.) While the ban on self-represented artificial legal entities does not prevent the court from granting the motion to withdraw, it does place pressure on Plaintiff Utopia to obtain new counsel or risk forfeiting important rights through non-representation, such as dismissal of the action or having a default entered. (See <i>Rogers v. Sonoma County Municipal Court, supra</i>, 197 Cal.App.3d at p. 1318; <i>Ferruzzo v. Superior Court</i> (1980) 104 Cal.App.3d 501, 504.) Therefore, it is incumbent upon the court and Counsel to advise Plaintiff Utopia or its representatives of the necessity of obtaining representation and to ensure that they obtain representation. (See <i>Rogers v. Sonoma County Municipal Court, supra</i>, 197 Cal.App.3d at p. 1318.)
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		The court will issue an order to show cause re: dismissing the complaint of Plaintiff Utopia for failure to retain counsel, and will order that Counsel serve Plaintiff Utopia with the order relieving counsel, notice of the order to show cause re: dismissing the complaint of Plaintiff Utopia for failure to retain counsel, and notice of this ruling. Counsel shall give notice of this ruling in the manner ordered by the court.
6	Ameris Bank vs. SF Glass Cleaning Solutions 30-2024-01388752	<u>Motions to Be Relieved as Counsel</u> Counsel Jeffery P. Boykin's Motion to Be Relieved as Counsel for Defendant SF Glass Cleaning Solutions is GRANTED. Counsel Jeffery P. Boykin's Motion to Be Relieved as Counsel for Defendant Mei Mei Li is GRANTED. Counsel Jeffery P. Boykin Counsel is ORDERED to submit to this court a proposed Order Granting Attorney's Motion to Be Relieved as Counsel – Civil (Form MC-053) that is completely and correctly filled out, for both Defendant SF Glass Cleaning Solutions and Defendant Mei Mei Li, within 10 days of this ruling. Within 15 days of receiving both signed Forms MC-053 back from the court, Counsel Jeffery P. Boykin is ORDERED to serve Defendants SF Glass Cleaning Solutions and Mei Mei Li with the signed Form MC-053, notice of the Order to Show Cause hearing set forth below, and notice of this ruling, in the manner described in Rules of Court rule 3.1362(d). Counsel Jeffery P. Boykin shall be relieved as counsel of record for Defendants SF Glass Cleaning Solutions and Mei Mei Li effective upon the filing of a proof of service showing timely service of the signed Form MC-053, notice of the Order to Show Cause hearing, and notice of this ruling. The Court SETS a hearing on an Order to Show Cause re: Barring Defendant SF Glass Cleaning Solutions from Litigating this Case Without Counsel on December 17, 2026, at 10:00 am in Department N15. <u>Pending Motion</u>

		Counsel Jeffery P. Boykin (Counsel) moves to be relieved as counsel for Defendants SF Glass Cleaning Solutions and Mei Mei Li. <u>Standard to Be Relieved as Counsel</u> "The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination . . . [u]pon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284.) The notice of motion and motion to be relieved as counsel under Civil Procedure Code section 284 shall be directed to the client and shall be made on the Judicial Council's Notice of Motion and Motion to Be Relieved as Counsel-Civil form (Form MC-051). (Cal. Rules of Court, rule 3.1362(a).) No memorandum is required for the motion. (See Cal. Rules of Court, rule 3.1362(b).) However, "[t]he motion to be relieved as counsel must be accompanied by a declaration on the <i>Declaration in Support of Attorney's Motion to Be Relieved as Counsel – Civil</i> (form MC-052). The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)." (Cal. Rules of Court, rule 3.1362(c), italics original.) In addition, "[t]he proposed order relieving counsel must be prepared on the <i>Order Granting Attorney's Motion to Be Relieved as Counsel--Civil</i> (form MC-053) and must be lodged with the court with the moving papers." (Cal. Rules of Court, rule 3.1362(e), italics original.) Motions to be relieved as counsel "must be served on the client and on all other parties who have appeared in the case" and service must be made by "personal service, electronic service, or mail." (Cal. Rules of Court, rule 3.1362(d).) If the motion is served by mail, it shall be accompanied by a declaration stating facts showing either that (1) the service address is the current residence or business address of the client or (2)
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		the service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. (Cal. Rules of Court, rule 3.1362(d)(1).) "As used in this rule, 'current' means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current." (<i>Ibid.</i>) If the motion is served by electronic mail, "it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address." (Cal. Rules of Court, rule 3.1362(d)(2).) The motion may be brought on various grounds, some of which include the client's failure to pay attorney fees, (<i>People v. Prince</i> (1968) 268 Cal.App.2d 398, 406); the client's insistence on an action that is not justified under existing law or by good faith argument, (<i>Estate of Falco v. Decker</i> (1987) 188 Cal.App.3d 1004, 1015); and a conflict of interest between counsel and the client, (<i>Aceves v. Superior Court</i> (1996) 51 Cal.App.4th 584, 592.) However, under the Rules of Professional Conduct, "a member shall not terminate a representation until the lawyer has taken reasonable steps to avoid reasonably foreseeable prejudice to the rights of the client, such as giving the client sufficient notice to permit the client to retain other counsel, and complying with paragraph (e)." (Rules Prof. Conduct, rule 1.16(d); see <i>Ramirez v. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915.) Thus, the court has discretion to deny a motion to be relieved as counsel where discharging counsel would result in "undue prejudice to the client's interests, " (<i>Ramirez vs. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915), or "an unreasonable disruption of the orderly processes of justice," (<i>People v. Ortiz</i> (1990) 51 Cal.3d 975, 979). The court may also deny an attorney's request to withdraw "where such withdrawal would work an injustice or cause undue delay in the proceeding".
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		(<i>Mandell v. Superior Court</i> (1977) 67 Cal.App.3d 1, 4.) However, such discretion is to be exercised reasonably. (<i>Ibid.</i>) In this case, Counsel has complied with the requirements of the California Rules of Court, including serving the clients with the motion papers by mail at the clients' last known address and confirming within the last 30 days that the address is the clients' current address. Counsel also has declared a justifiable reason to be relieved as counsel — that the clients will not respond to electronic mails and telephone calls, and have been completely unresponsive. In addition, Defendants SF Glass Cleaning Solutions and Mei Mei Li already have stipulated that judgment may be entered against them and judgment has been entered against them in this case. (See ROA #64.) As a result, the only hearing scheduled in this case is an Order to Show Cause re: Dismissal on Settled Case that is set for October 23, 2026 at 8:30 a.m. in Department C65. Therefore, Defendants SF Glass Cleaning Solutions and Mei Mei Li will have sufficient time to find new counsel and will not be unduly prejudiced in their ability to prepare for the next hearing. In any case, no opposition has been filed setting forth prejudice to Defendants SF Glass Cleaning Solutions and Mei Mei Li or any other party should the court grant the motion to be relieved as counsel. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue].) Therefore, the court will grant the motion to be relieved as counsel. However, the proposed order submitted by Counsel is now out of date, and the court will require Counsel to submit a new proposed order that is completely and correctly filled out. However, Defendant SF Glass Cleaning Solutions is a corporation, limited liability company, or other artificial legal entity that cannot represent itself and must retain counsel to act on its behalf in court.
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		(See <i>Gamet v. Blanchard</i> (2001) 91 Cal.App.4th 1276, 1284 fn.5; <i>Rogers v. Sonoma County Municipal Court</i> (1988) 197 Cal.App.3d 1314, 1318.) While the ban on self-represented artificial legal entities does not prevent the court from granting the motion to withdraw, it does place pressure on Defendant SF Glass Cleaning Solutions to obtain new counsel or risk forfeiting important rights through non-representation. (See <i>Rogers v. Sonoma County Municipal Court, supra</i>, 197 Cal.App.3d at p. 1318; <i>Ferruzzo v. Superior Court</i> (1980) 104 Cal.App.3d 501, 504.) Therefore, it is incumbent upon the court and Counsel to advise the Defendant SF Glass Cleaning Solutions or the representatives of Defendant SF Glass Cleaning Solutions of the necessity of obtaining representation and to ensure that they obtain representation. (See <i>Rogers v. Sonoma County Municipal Court, supra</i>, 197 Cal.App.3d at p. 1318.) The court will issue an order to show cause re: barring Defendant SF Glass Cleaning Solutions from litigating this case without counsel, and will order that Counsel serve Defendant SF Glass Cleaning Solutions and Mei Mei Li with the order relieving counsel, notice of the order to show cause re: barring Defendant SF Glass Cleaning Solutions from litigating this case without counsel, and notice of this ruling. Counsel shall give notice of this ruling in the manner ordered by the court.
8	Cunningham vs. Santa Ana Unified School District 30-2025-01531073	<u>Demurrer</u> Defendant Santa Ana Unified School District's Demurrer to Plaintiff's Complaint is SUSTAINED with 15 days leave to amend as to the 1st Cause of Action, SUSTAINED without leave to amend as to the 2nd Cause of Action, and OVERRULED as to the 4th and 5th Causes of Action. If Plaintiff Pablo Cunningham does not amend the Complaint within the period of time stated above, Defendant Santa Ana Unified School District shall file an answer or other pleading in response to the remaining causes of action of the Complaint within

		10 days of the expiration of the period of time to amend. (See Cal. Rules of Court, rule 3.1320(j).) The parties are reminded that, when leave to amend is granted upon the sustaining of a demurrer or the granting of a motion to strike, amendments are limited to the issues addressed in the court's ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (See <i>Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 ["It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all."].) <u>Pending Motion</u> Defendant Santa Ana Unified School District demurs to the 1st, 2nd, 4th, and 5th Causes of Action of the Complaint filed by Plaintiff Pablo Cunningham. <u>Standard for Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) For this reason, the court will not decide questions of fact on demurrer. (See <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Instead, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (<i>Serrano v. Priest</i> (1971) 5 Cal.3d 584, 591, citation omitted; see <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318). Therefore, the court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.)
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		However, "where facts appearing in attached exhibits or judicially noticed documents contradict, or are inconsistent with, the complaint's allegations, we must rely on the facts in the exhibits and judicially noticed documents." <i>(Jimenez vs. Mrs. Gooch's Natural Foods Markets, Inc. (2023) 95 Cal.App.5th 645, 653.)</i> Although courts should take a liberal view of inartfully drawn pleadings, (see Code Civ. Proc., § 452), it remains essential that a pleading set forth the actionable facts relied upon with sufficient precision to inform the responding party of the matters that the pleading party is alleging, and what remedies or relief is being sought, (see <i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413). Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (<i>Schmid v. City and County of San Francisco</i> (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a).) <u>1st Cause of Action (Whistleblower Retaliation under Cal. Labor Code § 1102.5)</u> Labor Code section 1102.5 states that: An employer, or any person acting on behalf of the employer, shall not retaliate against an employee for disclosing information, or because the employer believes that the employee disclosed or may disclose information, to a government or law enforcement agency, to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance, or for providing information to, or testifying before, any public body conducting an investigation, hearing, or inquiry, if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation, regardless of whether disclosing the information is part of the employee's job duties. (Labor Code, § 1102.5, subd. (b).)
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		In order to make out a claim for retaliation under Section 1102.5, the plaintiff "must show (1) she engaged in a protected activity, (2) her employer subjected her to an adverse employment action, and (3) a causal link between the two." (<i>St. Myers v. Dignity Health</i> (2019) 44 Cal.App.5th 301, 314 OR <i>St. Myers v. Dignity Health, supra</i>, 44 Cal.App.5th at p. 314.) Defendant contends that the 1st Cause of Action fails because it does not identify any specific state or federal statute or local, state, or federal rule or regulation that Plaintiff reasonably believed was violated. Plaintiff concedes that the 1st Cause of Action is not sufficiently pleaded but seeks leave to amend to identify the specific statutes that Plaintiff reasonably believed were being violated. (See Pltf.'s Opp'n to Def.'s Dem. (Opp'n) at pp. 2:109-13, 4:7-6:8.) "It is an abuse of the trial court's discretion to sustain a demurrer without leave to amend if there is a reasonable possibility the plaintiff can amend the complaint to allege any cause of action." (<i>Smith v. State Farm Mutual Automobile Ins. Co.</i> (2001) 93 Cal.App.4th 700, 711.) Nonetheless, "for an original complaint, regardless whether the plaintiff has requested leave to amend, it has long been the rule that a trial court's denial of leave to amend constitutes an abuse of discretion unless the complaint 'shows on its face that it is incapable of amendment.'" (<i>Eghtesad v. State Farm General Insurance Co.</i> (2020) 51 Cal.App.5th 406, 411, quoting <i>King v. Mortimer</i> (1948) 83 Cal.App.2d 153, 158; see <i>Cabral v. Soares</i> (2007) 157 Cal.App.4th 1234, 1240 ["Only rarely should a demurrer to an initial complaint be sustained without leave to amend."].) Here, Plaintiff has requested leave to amend and indicated how he would amend the Complaint. Further, the demurrer is brought against the original Complaint such that Plaintiff has not had a prior opportunity to amend. Therefore, the court will sustain the demurrer to the 1st Cause of Action with leave to amend. <u>2nd Cause of Action (Wrongful Termination in Violation of Public Policy)</u>
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		"[W]hen an employer's discharge of an employee violates fundamental principles of public policy, the discharged employee may maintain a tort action and recover damages traditionally available in such actions." (<i>Tameny v. Atlantic Richfield Co.</i> (1980) 27 Cal.3d 167, 170.) "The elements of a claim for wrongful discharge in violation of public policy are (1) an employer-employee relationship, (2) the employer terminated the plaintiff's employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm." (<i>Yau v. Allen</i> (2014) 229 Cal.App.4th 144, 154.) However, the Government Claims Act (Act), Government Code §§ 810 <i>et seq.</i>, declares a general rule of immunity, contained in Civil Procedure Code section 815, and then sets out exceptions to that rule. (<i>Cole v. Town of Los Gatos</i> (2012) 205 Cal.App.4th 749, 757.) Under the rule, "[a] public entity is not liable for an injury, '[e]xcept as otherwise provided by statute.'" (<i>Hampton v. County of San Diego</i> (2015) 62 Cal.4th 340, 347, quoting Gov't Code, § 815, subd. (a).) Therefore, "[i]t is a well-settled rule that 'there is no common law governmental tort liability in California; and except as otherwise provided by statute, there is no liability on the part of a public entity for any act or omission of itself, a public employee, or any other person.'" (<i>Green Valley Landowners Assn. v. City of Vallejo</i> (2015) 241 Cal.App.4th 425, 441–442, quoting <i>Cowing v. City of Torrance</i> (1976) 60 Cal.App.3d 757, 761.) Here, the Complaint alleges that Defendant is a public entity. (See Compl., ¶ 2 ["Plaintiff PABLO CUNNINGHAM ("Plaintiff" or "Cunningham") hereby complains against Defendants SANTA ANA UNIFIED SCHOOL DISTRICT ('District'), a public entity"], bold omitted.) Thus, Defendant is immune from common law claims, such as the 2nd Cause of Action, except where such claims are based on a statute. Defendant argues that the 2nd Cause of Action cites to no statute that was violated by the termination of Plaintiff's employment.
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		Plaintiff has agreed to withdraw the 2nd and 3rd Causes of Action. (See Opp’n at pp. 2:5-9, 6:9-16.) Thus, the court will sustain the demurrer without leave to amend as to the 2nd Cause of Action. (fn.1) (fn.1) Defendant has not demurred to the 3rd Cause of Action, but based upon Plaintiff’s representation, the court expects that the 3rd Cause of Action will not be reasserted in the amended complaint. <u>4th Cause of Action (Retaliation in Violation of the Fair Employment and Housing Act)</u> The Fair Employment and House Act (FEHA) prohibits an employer from “discharg[ing], expel[ling], or otherwise discriminat[ing] against any person because the person has opposed any practices forbidden under [FEHA].” (Gov’t Code, § 12940, subd. (h).) “To establish a prima facie case of retaliation, ‘a plaintiff must show (1) he or she engaged in a “protected activity,” (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer’s action.’” (<i>Zamora v. Security Industry Specialists, Inc.</i> (2021) 71 Cal.App.5th 1, 63, citing <i>Yanowitz v. L’Oreal USA, Inc.</i> (2005) 36 Cal.4th 1028, 1042.) The Complaint alleges that Plaintiff engaged in protected activity by reporting “gender-based discriminatory treatment between the boys’ and girls’ wrestling teams, including the unequal allocation and mishandling of resources” and “the misappropriation of funds belonging to the girls’ team accounts, on two separate occasions, which Plaintiff reasonably believes constituted unlawful gender discrimination and disparate treatment.” (Compl., ¶¶ 58-59, bold omitted.) The Complaint also pleads that “[f]ollowing Plaintiff’s reports, Defendant subjected Plaintiff to adverse employment actions, including termination, and such actions were taken substantially because of Plaintiff’s protected activity” and “Plaintiff’s protected disclosures regarding gender discrimination and financial misappropriation were a substantial motivating factor in Defendant’s
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		retaliatory conduct, including Plaintiff's ultimate termination." (<i>Id.</i>, ¶¶ 62-63, bold omitted.) These allegations are sufficient to make out a FEHA retaliation claim. Defendant, however, throws up a number of one-sentence arguments that it fails to explain and that lack merit. For example, Defendant contends that "Plaintiff did not engage in a protected activity for the reasons discussed above" and "as discussed above, there is no underlying claim regarding the whistleblower cause of action." (Dem. to Pltf.'s Compl., Mem. of P.s&A.s (Dem.) at pp. 10:20, 11:9-10.) Despite the fact that these statements come on the 10th and 11th pages respectively of the document, Defendant does not explain which arguments it is referring to when it says the arguments were "discussed above." In any case, the Complaint clearly alleges that Plaintiff was engaged in protective activity when he reported gender-based discrimination treatment. Further, the whistleblower cause of action failed because Plaintiff failed to state with specificity the statute, regulation, or rule he reasonable believed was violated, as required by the whistleblower statute, Labor Code section 1102.5. The FEHA statute upon the 4th Cause of Action is based, Government Code section 12940(h), contains no such requirement of specificity. It is sufficient that the Complaint allege that Defendant retaliated against him for reporting gender-based discrimination, which is prohibited under FEHA. (See Gov't Code, § 12940, subd. (a).) Further, unlike the common law wrongful termination cause of action, the 4th Cause of Action is based on a violation of a statute, namely FEHA and Government Code section 12940(h). Defendant also contends Plaintiff "was an at will employee who was let go." (Dem. at p. 10:20-21.) Of course, an employer is not immune from a FEHA claim simply because the employee is at-will. (See <i>Phillips v. St. Mary Regional Medical Center</i> (2002)
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		96 Cal.App.4th 218, 226 [“[A]lthough an employer may terminate an at-will employee for no reason, or any arbitrary or irrational reason, the employer has no power to terminate the employee for a reason contrary to the law or fundamental public policy.”].) Defendant next contends that “Plaintiff cannot establish any causal link to a protected activity.” (Dem. at p. 10:21.) On demurrer, Plaintiff does not need to establish causation. Plaintiff only needs to plead that there was causation, which Plaintiff has done. Defendant further asserts that “Plaintiff fails to identify an employee of DISTRICT that engaged in any prohibited conduct.” (<i>Id.</i> at p. 11:6.) First, Defendant fails to point to any authority for the proposition that Plaintiff is required to provide this level of specificity in the Complaint, especially with respect to a matter that is within the knowledge of the Defendant, such as who misallocated the donations to the boy’s wrestling program. Second, Defendant points to prohibited activity by two coaches, who he specifically names in the Complaint. (See Compl., ¶ 21.) Defendant then claims that “Plaintiff cannot properly assert a ‘harassment’ claim as none exists” (Dem. at p. 11:7.) This argument is a red herring. Plaintiff is not alleging a harassment claim, but rather a retaliation claim. “A demurrer must dispose of an entire cause of action to be sustained.” (<i>Fremont Indemnity Co. v. Fremont General Corp.</i> (2007) 148 Cal.App.4th 97, 119.) Thus, the 4th Cause of Action stands because the retaliation claim is properly pleaded even if a harassment claim is not. Defendant further argues that “no facts are alleged, with specificity or otherwise. [sic] that DISTRICT has a legal obligation to prevent purported misconduct of a non-employee.” (Dem. at p. 11:7-9.)
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		However, the 4th Cause of Action is not based on the misconduct of non-employees. Rather, the Complaint alleges that Plaintiff reported the misconduct of employees of Defendant, including the unnamed employee who misallocated the donations to the boy's wrestling program and the two wrestling coaches identified by name. (See Compl., ¶¶ 16-24.) (fn.2) (fn.2) To the extent Defendant contends that the Complaint does not adequately allege that Plaintiff engaged in protected activity because, after the first time Plaintiff reported the misallocation of funds, the misallocation was corrected, the court notes that the Complaint alleges that a second donation was similarly misallocated and there is nothing in the Complaint which shows that this misallocation was corrected. (See Compl., ¶¶ 19-20, 23-26.) Accordingly, the court will overrule the demurrer to the 4th Cause of Action. <u>5th Cause of Action (Failure to Prevent Harassment and Discrimination under Cal. Gov. Code § 12940(k))</u> FEHA provides that it is an unlawful employment practice: "(k) For an employer, labor organization, employment agency, apprenticeship training program, or any training program leading to employment, to fail to take all reasonable steps necessary to prevent discrimination and harassment from occurring." (Gov. Code, § 12940, subd. (k).) Section 12940(k) "creates a separate actionable tort enforceable upon the establishment of the usual tort elements of duty of care, breach of duty (a negligent act or omission), causation, and damages." (<i>Dickson v. Burke Williams, Inc.</i> (2015) 234 Cal.App.4th 1307, 1313.) Such a claim requires a plaintiff to prove: (1) he or she was an employee; (2) subject to harassment/discrimination/retaliation in the course of employment; (3) the employer failed to take all reasonable steps to prevent the harassment/discrimination/retaliation; (4) the plaintiff was harmed; and (5) the employer's failure to take all reasonable steps to prevent harassment/
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		discrimination/retaliation was a substantial factor in causing the plaintiff's harm. (See CACI 2527.) Thus, a cause of action for failure to prevent discrimination or harassment is contingent upon a viable claim of discrimination or harassment. (<i>Dickson v. Burke Williams, Inc., supra</i>, 234 Cal.App.4th at p. 1314.) Defendant contends that this cause of action fails because there is no underlying FEHA harassment or discrimination claim. However, the retaliation claim is sufficiently pleaded and survives the demurrer. Accordingly, the court will overrule the demurrer to the 5th Cause of Action. <u>Motion to Strike</u> Defendant Santa Ana Unified School District's Motion to Strike Portions of Plaintiff's Complaint is GRANTED with 15 days leave to amend. If Plaintiff Pablo Cunningham does not amend the Complaint within the period of time stated above, Defendant Santa Ana Unified School District shall file an answer or other pleading in response to the remaining causes of action of the Complaint within 10 days of the expiration of the period of time to amend. (See Cal. Rules of Court, rule 3.1320(j).) <u>Pending Motion</u> Defendant Santa Ana Unified School District moves to strike Paragraphs 36, 66, and 76 of the Complaint filed by Plaintiff Pablo Cunningham, which relate to prejudgment interest and punitive damages. <u>Standard for Motion to Strike</u> A party may move to strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436.) "Irrelevant" matters include: allegations not essential to the claim, allegations neither pertinent
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		to nor supported by an otherwise sufficient claim, or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) A party may also request to strike legal conclusions. (Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:179 (2010).) Specifically, conclusory allegations that are not supported by factual allegations in the complaint may be stricken. (<i>Perkins v. Superior Court</i> (1981) 117 Cal.App.3d 1, 6.) For example, prayers for relief that lack factual foundation may be stricken from a complaint. (See <i>Turman v. Turning Point of Central Calif., Inc.</i> (2010) 191 Cal.App.4th 53, 63 [trial court properly struck prayer for punitive damages where complaint failed to allege sufficient facts to show that defendant acted with malice, oppression, or fraud].) The grounds for a motion to strike must appear on the face of the pleading or from matters which the court may judicially notice. (See Code Civ. Proc., § 437.) In addition, pleadings are to be construed liberally with a view to substantial justice. (Code Civ. Proc., § 452; Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:197 (2010).) "In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. In ruling on a motion to strike, courts do not read allegations in isolation." (<i>Clauson v. Superior Court</i> (1998) 67 Cal.App.4th 1253, 1255, citations omitted.) <u>Prejudgment Interest</u> Civil Procedure Code section 3287 provides that: (a) A person who is entitled to recover damages certain, or capable of being made certain by calculation, and the right to recover which is vested in the person upon a particular day, is entitled also to recover interest thereon from that day, except when the debtor is prevented by law, or by the act of the
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		creditor from paying the debt. This section is applicable to recovery of damages and interest from any debtor, including the state or any county, city, city and county, municipal corporation, public district, public agency, or any political subdivision of the state. (b) Every person who is entitled under any judgment to receive damages based upon a cause of action in contract where the claim was unliquidated, may also recover interest thereon from a date prior to the entry of judgment as the court may, in its discretion, fix, but in no event earlier than the date the action was filed. (Code Civ. Proc., § 3287, subds. (a)-(b).) In addition, Civil Procedure Code section 3288 states that "[i]n an action for the breach of an obligation not arising from contract, and in every case of oppression, fraud, or malice, interest may be given, in the discretion of the jury." (Code Civ. Proc., § 3288.) "Under Civil Code section 3288, the trier of fact may award prejudgment interest '(i)n an action for the breach of an obligation not arising from contract, And in every case of oppression, fraud, or malice . . .'" (<i>Bullis v. Security Pac. Nat. Bank</i> (1978) 21 Cal.3d 801, 814, quoting Code Civ. Proc., § 3287.) This applies to both the jury or the court when sitting as trier of fact. (<i>Id.</i> at p. 814, fn.16.) Finally, Civil Procedure Code section 3291 provides that "[i]n any action brought to recover damages for personal injury sustained by any person resulting from or occasioned by the tort of any other person, corporation, association, or partnership, whether by negligence or by willful intent of the other person, corporation, association, or partnership, . . . it is lawful for the plaintiff in the complaint to claim interest on the damages alleged as provided in this section." (Civil Code, § 3291.) Prejudgment interest is available under Section 3291 "[i]f the plaintiff makes an offer pursuant to Section 998 of the Code of Civil Procedure which the defendant does not accept prior to trial or within 30 days, whichever occurs first, and the
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		plaintiff obtains a more favorable judgment, the judgment shall bear interest at the legal rate of 10 percent per annum calculated from the date of the plaintiff's first offer pursuant to Section 998 of the Code of Civil Procedure which is exceeded by the judgment, and interest shall accrue until the satisfaction of judgment.'" (<i>Lakin v. Watkins Associated Industries</i> (1993) 6 Cal.4th 633, 657, quoting Civil Code, § 3291, footnote omitted.) However, Section 3291 "shall not apply to a public entity, or to a public employee for an act or omission within the scope of employment, and neither the public entity nor the public employee shall be liable, directly or indirectly, to any person for any interest imposed by this section." (<i>Ibid.</i>) Here, the Complaint does not allege that Plaintiff's damages are certain or capable of being made certain by calculation, nor doe Plaintiff's claims sound in contract. Thus, Section 3287 does not apply. Further, while the Complaint does allege that Defendant acted with malice, oppression, or fraud, it does so only to seek punitive damages. (See Compl., ¶¶ 66, 76.) In addition, the court will strike these paragraphs of the Complaint, for the reasons stated below. As a result, Section 3288 does not apply. Finally, Section 3291 has not relevance here because there is no allegation that Plaintiff made a Civil Procedure Code section 998 offer and in any case, Defendant is a public entity to which Section 3291 does not apply. In addition, Plaintiff has failed to file an opposition or respond to the motion to strike. Thus, Plaintiff has waived any arguments regarding this motion. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].) Accordingly, the court will grant the motion to strike with respect to the allegation for prejudgment interest.
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Striking Punitive Damages

To obtain punitive damages, a plaintiff must plead and prove one of the following: malice, oppression, or fraud. (See Civil Code, § 3294, subd. (a).)

"Malice" is defined as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civil Code, § 3294, subd. (a)(1).)

"Oppression" means "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civil Code, § 3294, subd. (a)(2).)

"Fraud" is defined as "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civil Code, § 3294, subd. (a)(3).)

In order to survive a motion to strike, a complaint must not only allege in general terms oppression, fraud, or malice, but also plead ultimate facts in support. (See *Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166 ["The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim."], citations omitted.)

However, "a public entity is not liable for damages awarded under Section 3294 of the Civil Code or other damages imposed primarily for the sake of example and by way of punishing the defendant." (Gov't Code, § 818.)

Here, Plaintiff pleads that Defendant is a public entity. (See Compl., ¶ 2.)

Therefore, the court will grant the motion to strike with respect to the allegations for punitive damages.

Leave to Amend

		In ruling on a motion to strike, the court employs the same liberality to amend as used for demurrers. As long as there is a reasonable possibility that plaintiffs can cure the defects, leave to amend is appropriate. (See <i>Grieves v. Superior Court</i> (1984) 157 Cal.App.3d 159, 168; <i>Price v. Dames & Moore</i> (2001) 92 Cal.App.4th 355, 360.) However, it is the plaintiff's "burden to establish how the complaint can be amended to state a valid cause of action." (<i>Sanowicz v. Bacal</i> (2015) 234 Cal.App.4th 1027, 1044.) Nonetheless, "for an original complaint, regardless whether the plaintiff has requested leave to amend, it has long been the rule that a trial court's denial of leave to amend constitutes an abuse of discretion unless the complaint 'shows on its face that it is incapable of amendment.'" (<i>Eghtesad v. State Farm General Insurance Co.</i> (2020) 51 Cal.App.5th 406, 411, quoting <i>King v. Mortimer</i> (1948) 83 Cal.App.2d 153, 158; see <i>Cabral v. Soares</i> (2007) 157 Cal.App.4th 1234, 1240 ["Only rarely should a demurrer to an initial complaint be sustained without leave to amend."].) As the Court of Appeal has explained: "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (<i>Angie M. v. Superior Court</i> (1995) 37 Cal.App.4th 1217, 1227.) Here, Plaintiff has not requested leave to amend and has not explained how he would amend the Complaint to properly allege an entitlement to prejudgment interest and punitive damages. However, the motion to strike is asserted against the original Complaint such that Plaintiff has not had a prior opportunity to amend the Complaint. Further, the court has already granted Plaintiff leave to amend the Complaint in the face of Defendant's demurrer. Thus, no undue prejudice or delay would be caused by the court granting leave to amend here. Therefore, the court will exercise its discretion and grant leave to amend. The parties are reminded that, when leave to amend is granted upon the sustaining of a demurrer or the granting of a motion to strike,
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		amendments are limited to the issues addressed in the court's ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (See <i>Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 ["It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all."].) Defendant shall give notice of these rulings.
9	Hernandez vs. Anaheim Arena Management LLC 30-2024-01414209	<u>Motion for Summary Judgment and/or Summary Adjudication</u> There is no written tentative ruling on this matter. The court will hear oral argument from the parties or their counsel.
10	Richardson vs. FCA US LLC 30-2023-01345674	<u>Motion for Attorney's Fees and Costs</u> Plaintiff Wayne Patrick Richardson's Motion for Attorney's Fees, Costs, and Expenses is GRANTED in part and DENIED in part. Defendant FCA US LLC is ORDERED to pay to Plaintiff Wayne Patrick Richardson reasonable attorney's fees in the amount of \$36,626.50 and costs in the amount of \$6,037.53 within 30 days of service of the notice of ruling. <u>Pending Motion</u> Plaintiff Wayne Patrick Richardson moves for an award of attorney's fees in the amount of \$41,918 and costs in the amount of \$6,037.53 from Defendant FCA US LLC, pursuant to the Song-Beverly Consumer Warranty Act (Song-Beverly Act), Civil Code section 1790, <i>et seq.</i> <u>Standard for Motion for Attorney's Fees</u>

		Generally, attorney's fees are borne by the party that incurred them. (See <i>Pederson v. Kennedy</i> (1982) 128 Cal.App.3d 976, 978-79). Therefore, a party may recover attorney's fees only if provided for by contract or statute. (See Code Civ. Proc., § 1033.5, subd. (a)(10); see also <i>LNSU # 1, LLC v. Alta Del Mar Coastal Collection Community Association</i> (2023) 94 Cal.App.5th 1050, 1081 ["Each party to an action must pay its own attorney fees unless a statute or contract requires the opposing party to pay them."].) For example, the Song-Beverly Act states that: If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action. (Civ. Code, § 1794, subd. (d).) The legislature understood that "the prospect of having to pay attorney fees even if one wins a lawsuit can serve as a powerful disincentive to the unfortunate purchaser of a malfunctioning automobile." (<i>Murillo v. Fleetwood Enter., Inc.</i> (1998) 17 Cal.4th 985, 994.) Thus, by allowing an award of attorney's fees to the prevailing plaintiff in a Song-Beverly Act case, "our Legislature has provided injured consumers strong encouragement to seek legal redress in a situation in which a lawsuit might not otherwise have been economically feasible." (<i>Ibid.</i>) On a motion for attorney's fees, the moving party has the burden of establishing entitlement to an award. (<i>ComputerXpress, Inc. v. Jackson</i> (2001) 93 Cal.App.4th 993, 1020.) <u>Prevailing Party</u> The Song-Beverly Act does not define the term "prevailing buyer". As explained by the Court of Appeal in <i>Duff v.</i>
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		<i>Jaguar Land Rover North America, LLC</i> (2022) 74 Cal.App.5th 491, “the courts have split regarding how to define this term when it comes to the award of attorney fees.” (<i>Id.</i> at p. 501.) Plaintiff’s provides evidence that the parties entered into a settlement agreement on June 13, 2025 that provided “for full restitution, just over a one-time civil penalty, and an agreement that Defendant would pay Plaintiff’s attorney’s fees and costs with Plaintiff deemed the prevailing party should a motion become necessary.” (Decl. of Vanessa J. Oliva in Supp. of Pltf.’s Mot. for Att’y Fees, Costs, and Expenses (Oliva Decl.), ¶ 50.) Defendant agrees that Plaintiff is entitled to attorney’s fees. (See Opp’n of Def. to Pltf.’s Mot. for Att’ys’ Fees, Costs, and Expenses (Opp’n) at p. 2:10-11 [“Defendant does not contend that Plaintiff is not entitled to their legal fees”].) Thus, there is not dispute that Plaintiff is the “prevailing buyer” who is entitled to attorney’s fees. <u>Lodestar Calculation of Attorney’s Fees</u> The calculation of attorney’s fees under the Song-Beverly Act is based on the lodestar method, which multiplies the number of hours reasonably expended by a reasonable hourly rate. (<i>Graciano v. Robinson Ford Sales</i> (2006) 144 Cal.App.4th 140, 154; <i>Robertson v. Fleetwood Travel Trailers of California, Inc.</i> (2006) 144 Cal.App.4th 785, 817-819.) When using this method, the court begins by determining the reasonable hours the prevailing party’s attorney spent on the case and multiplying that number by the reasonable hourly rate. (See <i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1131-1134; <i>Christian Research Institute v. Alnor</i> (2008) 165 Cal.App.4th 1315, 1321.) However, the prevailing party should not receive a “windfall” through an award of reasonable attorney’s fees. (<i>Ketchum vs. Moses, supra</i>, 24 Cal.4th at p. 1132.) Thus, a prevailing buyer under the Song-Beverly Act has the burden of “showing that the fees incurred were ‘allowable,’ were ‘reasonably necessary to the conduct of the litigation,’ and were ‘reasonable in amount.’” (<i>Levy v. Toyota Motor Sales, U.S.A., Inc.</i> (1992) 4 Cal.App.4th 807, 816.)
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		"To that end, the court may require [a] defendant[] to produce records sufficient to provide 'a proper basis for determining how much time was spent on particular claims.' The court also may properly reduce compensation on account of any failure to maintain appropriate time records." (<i>ComputerXpress, Inc. v. Jackson, supra</i>, 93 Cal.App.4th at p. 1020, quoting <i>Hensley v. Eckerhart</i> (1983) 461 U.S. 424, 437, fn.12.) However, once an attorney has presented evidence of her or his actual time spent and hourly rate charged, the time and hourly rate are presumed to be reasonable. (<i>Mandel v. Lackner</i> (1979) 92 Cal.App.3d 747, 761; see <i>Horsford v Board of Trustees of California State University</i> (2005) 132 Cal.App.4th 359, 396 ["[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous."]; <i>Raining Data Corp. v. Barrenechea</i> (2009) 175 Cal.App.4th 1363, 1367 [declarations of counsel are "sufficient to meet the burden of establishing the reasonableness of the fees incurred, without the need to produce copies of counsel's detailed billing statements"].) "As the trial court 'is in the best position to value the services rendered by the attorneys in his or her courtroom,' we leave it in the trial court's discretion to determine the amount of reasonable attorney fees and costs to award . . . under the lodestar method." (<i>Frym v. 601 Main Street LLC</i> (2022) 82 Cal.App.5th 613, 622, quoting <i>569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.</i> (2016) 6 Cal.App.5th 426, 437; see also <i>Ketchum v. Moses, supra</i>, 24 Cal.4th at p. 1132 ["The trial judge is 'the best judge of the value of professional services rendered in his court.'"].) <u>Reasonable Hourly Rate</u> The reasonable hourly rate is based on the reasonable market value of the attorney's services. (See <i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1094-1095 or <i>PLCM Group, Inc. v. Drexler, supra</i>, 22 Cal.4th at p. 1094-1095.) This standard applies regardless of how much the attorney actually charged the client. (See <i>ibid.</i>) Thus, the same reasonable hourly rate will apply whether the attorney charged nothing for their
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		services, charged below-market or discounted rates, represented the client on a contingent fee basis, or are in-house counsel paid a fixed salary. To determine the reasonable market value of the legal services provided, the court must look to the range of reasonable rates charged by and judicially awarded to comparable attorneys for comparable work. (<i>See Children's Hospital & Medical Center v. Bonta</i> (2002) 97 Cal.App.4th 740, 783; see also <i>PLCM Group v. Drexler, supra</i>, 22 Cal.4th at p. 1095 ["[The] reasonable hourly rate is that prevailing in the community for similar work."].) The party requesting fees has the initial burden of producing evidence sufficient to support the reasonableness of the billing rates requested. (<i>See Davis v. City of San Diego</i> (2003) 106 Cal.App.4th 893, 903.) If the moving party meets its burden, the burden shifts to the opposing party to produce admissible evidence sufficient to show that the rates requested are not reasonable. (<i>See Graciano v. Robinson Ford Sales, Inc., supra</i>, 144 Cal.App.4th at p. 155 [finding court erred in reducing rates where evidence of reasonableness of rate requested was undisputed].) "In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases." (<i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 41, citations omitted; see also <i>Heritage Pacific Financial, LLC v. Monroy</i> (2013) 215 Cal.App.4th 972, 1009.) The value of legal services performed in a case is a matter of which the trial court has its own expertise. (<i>PLCM Group v. Drexler, supra</i>, 22 Cal.4th at p. 1096.) The trial court may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. (<i>Ibid.</i>) "It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court." (<i>Melnyk v. Robledo</i> (1976) 64 Cal.App.3d 618, 623.)
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		Here, Plaintiff requests the following hourly rates for her counsel: attorney Vanessa J. Oliva at \$470-\$530 per hour; attorney Jessica Anvar at \$530-\$575 per hour; attorney Carey Wood at \$450-\$520 per hour; and paralegal Robert Aguilar at \$200-\$215 per hour. Plaintiff provides support these requested hourly rates. (See Oliva Decl., ¶¶ 65-70.) Plaintiff also submits evidence that similar rates were approved by this court for Oliva, Anvar, Wood, and Aguilar. (See <i>id.</i>, ¶¶ 54-59, Exh.s 3-8.) Plaintiff also seeks hourly rates of \$215 per hour for Araceli Alatorre, \$200 per hour for Sergio Hernandez, and \$200-\$215 per hour for Melanie Say. Plaintiff does not provide any information about these individuals nor does he submit any evidence to support their qualifications to earn these hourly rates. Thus, the court cannot approve the hourly rates for Alatorre, Hernandez, and Say. With respect to Oliva, Anvar, Wood, and Aguilar, Defendant contends that their hourly rates are excessive and requests the court to apply the rates articulated in the 2023 Real Rate Report. (See <i>Arias v. Ford Motor Company</i> (C.D. Cal. 2020) 2020 WL 1940843, *3-*4 [court compared requested hourly rates with 2018 Real Rate Report].) Defendant asserts that, pursuant to the 2023 Real Rate Report, Plaintiff's senior attorneys should be capped at \$495 per hour, associates should be capped at \$295 per hour and paralegals should be capped at \$100 per hour. (See Decl. of Hector E. Zurita-Cruz in Supp. of Opp'n of Def. to Pltf.'s Mot. for Att'ys' Fees, Costs, and Expenses (Zurita-Cruz Decl.), ¶ 3, Exh. A.) Plaintiff responds that the portion of the 2023 Real Rate Report offered by Defendant is not specific to the Southern California area. In <i>Santana v. FCA US, LLC</i> (2020) 56 Cal.App.5th 334, a Song-Beverly Act case litigated in this county, the court noted that a \$650 hourly rate was "not an extraordinary, high hourly fee" and, rather,
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	was a fee “we see somewhat routinely.” (<i>Id.</i> at p. 350.) Recently, in <i>Tidrick v. FCA US LLC</i> (2025) 112 Cal.App.5th 1147, the Court of Appeal acknowledged that plaintiff’s “request for attorney fees was based on a lodestar calculation of 173 hours at hourly rates of \$415–\$500 per hour, the prevailing hourly rate in Orange County.” (<i>Id.</i> at p. 1152.) Further, in <i>Goglin v. BMW of North America, LLC</i> (2016) 4 Cal.App.5th 462, a Song-Beverly Act case litigated in San Diego county, the court found that an hourly rate of \$575 to be reasonable. (<i>Id.</i> at pp. 473-474.) Based on the evidence presented and its own knowledge and familiarity with the relevant legal market, the court finds the hourly rates requested by Plaintiff to be reasonable with the exception of the rates for Araceli Alatorre, Sergio Hernandez, and Melanie Say, which should be set to \$0 per hour, and the rates for Jessica J. Oliva, which should be capped at \$500 per hour. <u>Hours Reasonably Expended</u> “An award of attorney fees ‘should ordinarily include compensation for <i>all</i> the hours <i>reasonably spent</i>, including those relating solely to the fee.’” (<i>Frym v. 601 Main Street LLC</i> (2022) 82 Cal.App.5th 613, 619, quoting <i>Ketchum v. Moses, supra</i>, 24 Cal.4th at p. 1131; see also <i>id.</i> at p. 1141 [award of attorney’s fees “may include not only the fees incurred with respect to the underlying claim, but also the fees incurred in enforcing the right to mandatory fees.”].) The prevailing party has the burden to present verified time records showing the hours spent on the case.” (<i>Horsford v. Board of Trustees</i> (2005) 132 Cal.App.4th 359, 396.) However, once they are properly admitted, “the verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.” (<i>Ibid.</i>) In addition, the declarations of counsel are “sufficient to meet the burden of establishing the reasonableness of the fees incurred, without the
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		need to produce copies of counsel's detailed billing statements." (<i>Raining Data Corp. v. Barrenechea</i> (2009) 175 Cal.App.4th 1363, 1367.) Nonetheless "[a] trial court may not rubber stamp a request for attorney fees, but must determine the number of hours reasonably expended." (<i>Donahue v. Donahue</i> (2010) 182 Cal.App.4th 259, 271-272.) Therefore, prevailing parties should be compensated only for hours reasonably spent on fee-related issues. (<i>Serrano v. Unruh</i> (1982) 32 Cal.3d 621, 635.) As the Court of Appeal has explained: Although [] billing statements in support of a fee request form the "starting point" for determining the "hours reasonably expended" in a lodestar calculation, the trial court is not bound to accept these hours and may reduce them if it concludes the attorneys performed work unrelated to the [matter], or represented work that was unnecessary or duplicative or excessive in light of the issues fairly presented. (<i>569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.</i>, <i>supra</i>, 6 Cal.App.5th at p. 441, quoting <i>Christian Research Institute v. Alnor</i>, <i>supra</i>, 165 Cal.App.4th at pp. 1324, 1326; see <i>Graham v. DaimlerChrysler Corp.</i> (2004) 34 Cal.4th 553, 579-580 [court need not include inefficient or duplicative efforts when awarding attorney's fees].) In addition: A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether. "If . . . the Court were required to award a reasonable fee when an outrageously unreasonable one has been asked for, claimants would be encouraged to make unreasonable demands, knowing that the only unfavorable consequence of such misconduct would be reduction of their fee to what they should have asked in the first place. To discourage such greed, a severer reaction is needful" (<i>Ibid.</i>, quoting <i>Brown v. Stackler</i> (7th Cir. 1980) 612 F.2d 1057, 1069.)
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		For example, the court may reduce the number of hours based on considerations of "whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended." (<i>Christian Research Institute v. Alnor, supra</i>, 165 Cal.App.4th at p. 1320.) In challenges to the reasonableness of the number of hours billed, "it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence." (<i>Premier Medical Mgmt. Sys., Inc. v. California Ins. Guarantee Ass'n</i> (2008) 163 Cal.App.4th 550, 564.) "General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (<i>Ibid.</i>; see <i>Levy v. Toyota Motor Sales, U.S.A., Inc.</i> (1992) 4 Cal.App.4th 807, 816 [party seeking attorney fees has "the burden of showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.'"].) In this case, Plaintiff presented "computerized billing records of attorney hours spent litigating this case" showing that Plaintiff's Counsel or their staff spent 89.20 hours on this case, representing attorney's fees of \$37,418. (See Oliva Decl., ¶¶ 61, 63, Exh. 10.) Plaintiff also estimates that his counsel will expend an additional \$4,500 to review the opposition to the motion, to draft a reply to the opposition, and to attend the hearing in this matter. (See <i>id.</i>, ¶ 62.) As an initial matter, the court will not include the 1.4 hours billed by Alatorre, Hernandez, and Say because Plaintiff has not supported their hourly rates, which must then be set to \$0 per hour. In addition, Defendant raises three categories of objections to the number of hours requested by Plaintiff. First, Defendant requests the court remove \$3,838.50 in attorney's fees that was "billed and associated with plaintiff's motion to compel further responses to requests for production of documents, and subsequent motion to compel compliance." (Opp'n at p. 6:8-10; see also Opp'n, Exh. A at pp.
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		19, 44, 46 [yellow highlighted entries].) Defendant initially suggests that this billing was excessive, asserting that “[t]he legal arguments and templates of these motions were undoubtedly copied from previous sample motions – and identical to motions which counsel has likely filed in similar Song-Beverly actions.” (Opp’n at p. 6:14-16.) However, Defendant provides no evidence to support this assertion, such as a declaration or exhibits to demonstrate that Plaintiff’s Counsel overbilled for this work. Defendant also argues that Plaintiff waived his right to recover these attorney’s fees, which were associated with discovery motions, because Plaintiff failed to seek sanctions pursuant to Civil Procedure Code section 2023.040 when the motions were first brought. (See Opp’n at pp. 6:21-7:11.) Civil Procedure Code section 2023.040 states: A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities, and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought. (Code Civ. Proc., § 2023.040.) However, Defendant does not point to any part of Section 2023.040 or any statute or case law that indicates that failure to abide by the above requirement waives a party’s right to seek attorney’s fees for the remainder of the action. Defendant also fails to cite to any authority for the proposition that the failure seek <i>sanctions</i> pursuant to Section 2023.040, which is part of the Civil Discovery Act, bars a prevailing buyer from later requesting compensatory <i>attorney’s fees</i> pursuant to Civil Code section 1794, which is part of the Song-Beverly Act. The court will deny Defendant’s request to reduce the award of attorney’s fees by 7.5 hours (\$3,838.50).
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		Second, Defendant challenges \$2,711.00 in attorney's fees that Defendant claims are related to clerical tasks. (See Opp'n at p. 7:13-8:4, Exh. A at pp. 3-4, 6-8, 10, 13, 16-18, 22, 25-26, 28-33, 35, 37-49, 51, 53, 55-58, 62, 64-66, 69-72 [purple highlighted entries].) "Of course, purely clerical or secretarial tasks should not be billed at a paralegal rate, regardless of who performs them." (<i>Missouri v. Jenkins by Agyei</i> (1989) 491 U.S. 274, 288, fn.10.) Courts have described tasks such as preparing binders for a hearing, printing briefs for reference during hearings, tagging cites to the administrative record, calendaring and scheduling, and scanning documents, as clerical. (See <i>Save Our Uniquely Rural Community Environment v. County of San Bernardino</i> (2015) 235 Cal.App.4th 1179, 1187.) The court will remove time spent reviewing documents to "ensure filing acceptance," "sav[ing] documents," and updating the calendar, as these tasks are clerical and are not recoverable. However, the court will not strike entries wherein the attorney or staff member drafted documents, reviewed invoices in preparation of the Memorandum of Costs, or calculated statutory deadlines, as this work is legal and is recoverable. The court also will not remove 0.5 hours that attorney Oliva billed to communicate discrete tasks to a paralegal. Third, Defendant objects to the billing incurred in connection with drafting this motion, asserting that the motion is "a routine fee motion" and that there are not unique circumstances that would cause Plaintiff's Counsel to request \$8,233 to prepare the motion and reply, and to attend the hearing on the motion. (Opp'n at p. 8:8-15.) Plaintiff's Counsel indicates that they spent 4.9 hours drafting this motion, (see Oliva Decl., Exh. 10 at pp. 1-2), and 2.9 hours reviewing the opposition and drafting the reply, (see Supp. Decl. of Vanessa J. Oliva in Supp. of Pltf.'s Mot. for Att'y Fees, Cost and Expenses (Oliva Supp. Decl.), ¶15). Plaintiff Counsel also states that they anticipate spending an additional 2 hours preparing for and
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	attending the hearing on this motion. (See <i>id.</i>, ¶6.) The court finds this amount to be excessive in light of the routine nature of this motion and limited scope of the opposition, and will reduce the time by 2 hours. Therefore, the court calculates the lodestar as follows: • 2.5 hours billed by attorney Oliva at \$470 per hour = \$1,175 • 20.8 hours billed by attorney Oliva at \$490 per hour = \$10,192 • 41.0 hours billed by attorney at \$500 per hour = \$20,500 • 0.7 hours billed by attorney Anvar at \$530 per hour = \$371 • 0.4 hours billed by attorney Anvar at \$575 per hour = \$230 • 0.1 hours billed by attorney Wood at \$500 per hour = \$50 • 1.8 hours billed by paralegal Aguilar at \$200 per hour = \$360 • 11.4 hours billed by paralegal Aguilar at \$210 per hour = \$2,394 • 6.3 hours billed by paralegal Aguilar at \$215 per hour = \$1,354.50 Total \$36,626.50 <u>Multiplier</u> The court also has the discretion to increase or decrease the lodestar figure by applying a positive or negative multiplier based on a variety of factors that the court did not consider when determining the lodestar figure. (<i>Northwest Energetic Servs., LLC v. California Franchise Tax Bd.</i> (2008) 159 Cal.App.4th 841, 879-82; <i>Graciano v. Robinson Ford Sales, supra</i>, 144 Cal.App.4th at p. 154.) As the Court of Appeal has explained: The lodestar . . . may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.
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		(<i>Id.</i> at p. 154, quoting <i>Ketchum v. Moses, supra</i>, 24 Cal. 4th at p. 1132.) “The purpose of such adjustment is to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services.” (<i>Ketchum v. Moses, supra</i>, 24 Cal. 4th at p. 1132.) Nonetheless, the court is not required to impose a multiplier; the decision is discretionary. (See <i>Galbiso v. Orosi Pub. Util. Dist.</i> (2008) 167 Cal.App.4th 1063, 1089; <i>Nichols v. City of Taft</i> (2007) 155 Cal.App.4th 1233, 1241.) In addition, “[a]lthough discussions in the case law of the use of multipliers to adjust a lodestar figure relate primarily to the use of multipliers to increase fees, our Supreme Court has repeatedly observed that a lodestar figure may be adjusted not just upward but also, where appropriate, <i>downward</i>.” (<i>Thayer v. Wells Fargo Bank, N.A.</i> (2001) 92 Cal.App.4th 819, 840, <i>italics original</i>.) Defendant requests that a negative multiplier be applied to the lodestar in this case because this action was not novel or difficult, and there were “numerous entries where Plaintiff counsel’s work is excessive, unreasonable, and not necessary to prosecute this case.” (Opp’n at p. 10:10-15.) However, “for the most part, the difficulty of a legal question and the quality of representation are already encompassed in the lodestar.” (<i>Ketchum v. Moses, supra</i>, 24 Cal.4th at pp. 1138–1139.) The court has already considered the difficulty or simplicity of the issues presented in this case when determining the reasonable number of hours and the reasonable hourly rate. Further, to the extent that Defendant pointed to billing that was excessive, the court has already removed those time entries from lodestar calculation. The court will exercise its discretion and decline to apply a negative multiplier in this case.
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		<u>Costs</u> Generally, the prevailing party is entitled, as a matter of right, to recover costs in any action or proceeding. (See Code Civ. Proc., § 1032, subd. (b); <i>Foothill-De Anza Comm. College Dist. v. Emerich</i> (2007) 158 Cal.App.4th 11, 29-30.) In addition, the Song-Beverly Act specifically states that “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).) Civil Procedure Code section 1033.5 enumerates the specific costs that are recoverable by the prevailing party in a civil action. (See Code Civ. Proc, §§ 1032, subd. (b), 1033.5.) Section 1033.5 also provides that the court may award costs not expressly described in the statute for expenses that are “reasonably necessary to the conduct of the litigation” and are “reasonable in amount.” (Code Civ. Proc, § 1033.5, subd. (c)(2)-(4).) While the trial court has discretion to decide whether a cost item was reasonably necessary, the trial court does not have discretion to award a cost item that is not statutorily authorized. (See <i>Ladas v. California State Auto. Ass’n</i> (1993) 19 Cal.App.4th 761, 774.) To recover costs, the prevailing party must file and serve a memorandum of costs “within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first.” (Cal. Rules of Court, rule 3.1700(a).) The nonprevailing party then has 15 days after service of the memorandum of costs to file a motion to strike a cost altogether, or to tax the cost and reduce it. (Cal. Rules of Court, rule 3.1700, subd. (b).)
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		If the items on a memorandum of costs appear to be proper on their face, the verified memorandum of costs is <i>prima facie</i> evidence of their validity and the burden is on the party seeking to strike or tax costs to show they were not reasonable or necessary. (<i>Ladas v. California State Auto. Ass’n, supra</i>, 19 Cal.App.4th at p. 774.; see also <i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 131 [“If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they are not reasonable or necessary.”].) Here, Plaintiff filed and served his Memorandum of Costs on August 12, 2025. (See ROA #106.) Thus, a motion to strike or tax costs was due no later than August 29, 2025. (fn.1) (fn.1) Here, Plaintiff’s motion for costs appears to be premature as it was filed before entry of judgment or dismissal of the action. However, “a request for fees incurred before the rendition of the judgment in the trial court may be timely even if it is filed prematurely prior to the entry of judgment.” (<i>Yuba Cypress Housing Partners, Ltd. v. Area Developers</i> (2002) 98 Cal.App.4th 1077, 1086.) “Such a premature [motion] is to be liberally construed in favor of its sufficiency and treated as filed in accordance with [the rule], particularly where the opposing party is neither misled nor prejudiced by the premature filing.” (<i>Ibid.</i>) However, no motion to strike or tax costs has been filed and Defendant has not opposed the award of costs requested by Plaintiff. In fact, Defendant in its opposition appears to be assuming that the court will award \$6,037.53, the full amount of costs requested by Plaintiff. (See Opp’n at p. 10:23-11:4 [“Defendant respectfully requests that the Court award no more than \$21,775.83 to Plaintiff’s counsel in attorneys’ fees. Adding the claimed out-of-pocket costs and expenses of \$6,037.53, this Court should award no more than \$27,813.36 for attorneys’ fees, costs, and expenses (inclusive of fees charged in connection with the Motion) prior to implementing a negative multiplier.”], italics omitted, bold omitted.) The memorandum of costs constitutes <i>prima facie</i> evidence of the validity of the costs and Defendant
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		has not presented any argument or evidence opposing an award of costs. Therefore, the court will award Plaintiff his requested costs. Plaintiff shall give notice of this ruling.
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